

Chapter 780

SUBDIVISION AND LAND DEVELOPMENT

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[Adopted by the County Council of Allegheny County 4-17-2012 by Ord. No. 9-12.¹ Amendments noted where applicable.]

1. Editor's Note: This ordinance also repealed former Ch. 780, Subdivision and Land Development, adopted 6-4-1998.

ARTICLE I
General Provisions

§ 780-101. Authority; title; amendments.

- A. Enabling authority/adoption. The County Council of Allegheny County, in accordance with the Pennsylvania Municipalities Planning Code, Act 247 of 1968, as reenacted and amended by Act 170 of 1988, and as subsequently amended, 53 P.S. § 10101 et seq. (MPC), enacts the following chapter to regulate the subdivision and development of land in Allegheny County (County).
- B. Planning agency authority. The Allegheny County Department of Economic Development (Department) is designated as the County planning agency with authority to administer this chapter and to review and approve applications for subdivision and land development.
- C. Repealer. Any prior County ordinances or regulations or parts thereof conflicting with the provisions of this chapter, including but not limited to the Allegheny County Subdivision and Land Development Regulations adopted in 1983 (designated as Agreement No. 18870) and the amendments thereto adopted in 1987 (designated Agreement No. 19241) and the Allegheny County Subdivision and Land Development Ordinance of 1998, are hereby repealed.
- D. Title. This chapter shall be known and may be cited as the "Allegheny County Subdivision and Land Development Ordinance of 2012."
- E. Separability. Any section, subsection or provision of this chapter that is declared to be invalid by a court of competent jurisdiction shall not affect the validity of any other part of this chapter or the chapter as a whole.
- F. Amendments. This chapter may be amended by the County Council in accordance with the procedures specified in the MPC.
- G. Effective date. This chapter shall become effective 14 days after the date of enactment.

§ 780-102. Purpose.

- A. General purpose. It is the purpose of this chapter to protect and promote the public health, safety and welfare through the establishment of standards and procedures for the review and approval of subdivisions and land development in Allegheny County.
- B. Specific purposes. The provisions of this chapter are intended to achieve the following specific purposes:
 - (1) To encourage new development that is well-designed, of high quality and suited to the natural conditions of this site.
 - (2) To encourage the coordinated growth of communities and compact, efficient and economic patterns of development, and to avoid excessive public costs of scattered development.
 - (3) To prevent development which may be hazardous because of the physical character of land and to protect and preserve valued natural, historic and cultural features of the environment.
 - (4) To ensure the provision of public improvements which are necessary and appropriate for the development and which are coordinated with nearby areas.
 - (5) To provide flexibility in standards and requirements so that the design of development can be

fitted to the character of its site and to the community in which it is located.

- (6) To reflect and implement municipal, County and regional plans and policies.
- (7) To provide standards and procedures for the uniform preparation and recording of plans so that the land records of the County are accurate, complete and legible.
- (8) To coordinate consistency with local municipalities.
- (9) To plan for greenway connectivity throughout the County, as promoted by the County Comprehensive Plan (Allegheny Places).
- (10) To coordinate and provide a system of or network of pedestrian and bicycling trails and paths throughout the County and its governed municipalities.
- (11) To optimize access to rivers.
- (12) To encourage concentrated development and maximize use of existing highways, transit, and utilities.
- (13) To promote energy conservation.
- (14) To control light pollution.
- (15) To encourage sustainable design techniques, including the use of renewable energy systems and energy efficient building design.

§ 780-103. Jurisdiction.

- A. Approval authority. These regulations shall govern the review and approval of subdivisions and land developments in municipalities within the County which have not enacted a subdivision and land development ordinance in accordance with MPC § 504.²
- B. Municipal adoption by reference. These regulations shall also govern the review and approval of subdivisions and land developments in municipalities within the County that have chosen to adopt this chapter as their local subdivision and land development ordinance and have designated the Department to administer the regulations in this chapter on their behalf. The designation of the Department to administer this chapter as the subdivision and land development ordinance of a municipality shall not become effective without the concurrence of the Department.
- C. Review authority. In municipalities which have enacted a subdivision and land development ordinance, all applications for preliminary or final approval of subdivisions and land developments shall be forwarded upon receipt by the municipality to the Department for review and report.
- D. Review period. A municipality with its own ordinance shall not approve an application for subdivision or land development until the expiration of 30 days from the date the application was forwarded to the Department unless the report of the Department has been received.
- E. Exemption. The City of Pittsburgh is exempt from the provisions of the MPC and, therefore, from this chapter.

§ 780-104. Effect of adoption.

2. Editor's Note: See 53 P.S. § 10504.

- A. General. No subdivision or land development of any lot, tract or parcel of land shall be made, no street, sanitary sewer, storm sewer, water main or other improvements in connection therewith shall be laid out, constructed, opened or dedicated for public use or travel, or for the common use of occupants of buildings abutting thereon, except in accordance with the provisions of this chapter and of any applicable municipal ordinance.
- B. Recording required. All plans of subdivision and land developments shall be recorded in the Allegheny County Department of Real Estate within 90 days after final approval or within 90 days after the date of delivery of an approved plat signed by the Director following completion of conditions imposed for such approval, whichever is later.
- C. County approval or review notation required. The Department of Real Estate shall not accept any plan for recording unless the plan officially notes the approval of the approving authority and review by the Department where the Department is responsible for review, but not approval, of a plan.
- D. Effect on applications pending or previously approved.
 - (1) Pending applications. The provisions of this chapter shall not affect any application for subdivision or land development which is pending approval prior to the effective date of this chapter. Such applications shall comply with regulations in effect at the time they were filed.
 - (2) Approved applications. No provision of this chapter shall adversely affect the right of an applicant to complete any aspect of a plan that was approved prior to the effective date of this chapter in accordance with the terms of such approval within five years from the date of first approval.

§ 780-105. Interpretation; relation to other provisions.

- A. Interpretation. The provisions of this chapter shall be held to be minimum requirements for subdivisions and land developments in municipalities where the Department is responsible for the approval of applications.
- B. Conflict with other laws/regulations. If any provision of this chapter imposes restrictions which are different from those imposed by any other applicable ordinance, regulation or provision of law, the provision that is more restrictive or which imposes higher standards shall control.
- C. Conflict with private provisions. If the requirements of this chapter are different from those contained in deed restrictions, covenants or other private agreements, the requirements that are more restrictive or which impose higher standards shall govern, provided that the private provisions are otherwise lawful.
- D. Liability. The review or approval of a subdivision or land development by the Department in accordance with the provisions of this chapter shall not constitute a guarantee of any kind that the proposed development is safe and shall create no liability upon the County, its officials or employees.

§ 780-106. Modifications and waivers.

- A. Department may grant. The Department may grant a modification or waiver of the requirements of one or more provisions of this chapter for the following reasons, provided that such modification or waiver will not be contrary to the public interest and that the purposes of the chapter are observed:
 - (1) Hardship. The literal enforcement of the provision will exact undue hardship because of peculiar conditions pertaining to the land in question.

- (2) Alternative standard. An alternative standard can be demonstrated to provide equal or better results.
- B. Requests in writing. All requests for modifications or waivers shall be in writing and shall accompany and be a part of the application. The requests shall state in full the grounds and facts of hardship or evidence of equal or better result on which the request is based, the provision or provisions of the chapter involved and the minimum modification necessary.
- C. Records required. The Department shall keep a written record of all actions on requests for modifications.

§ 780-107. Mediation.

- A. Mediation as an option. The Department may offer mediation as an aid in reaching decisions on applications for approval of subdivision or development of land and as an alternative to appeals from such decisions. Mediation shall supplement, not replace, those procedures once they have been formally initiated. Nothing in this section shall be interpreted as expanding or limiting the County's police powers or as modifying any principle of substantive law.
- B. Voluntary participation. Participation in mediation shall be wholly voluntary. The appropriateness of mediation shall be determined by the particulars of each case and the willingness of the parties to negotiate. The Department shall assist, in each case, the mediating parties, assisted by the mediator, as appropriate, develop terms and conditions for:
 - (1) Funding mediation.
 - (2) Selecting a mediator who, at a minimum, shall have a working knowledge of zoning and subdivision procedures and demonstrated skills in mediation.
 - (3) Completing mediation, including the time limits for such completion.
 - (4) Suspending time limits otherwise authorized in this chapter, provided that there is written consent by the mediating parties and by an applicant or the Department if either is not a party to the mediation.
 - (5) Identifying all parties and affording them the opportunity to participate.
 - (6) Subject to legal restraints, determining whether some or all of the mediation sessions shall be open or closed to the public.
 - (7) Assuring that mediated solutions are in writing and signed by the parties and become subject to review and approval by the Department pursuant to the procedures for approval contained in this chapter.
- C. Final agreement admissible as evidence. No offers or statements made in the mediation sessions, excluding the final written mediated agreement, shall be admissible as evidence in any subsequent judicial or administrative proceedings.

§ 780-108. Appeals.

Any person aggrieved by a decision of the Department concerning an application for approval of a subdivision or land development may appeal the decision in accordance with the procedures specified in Article X-A of the MPC.

§ 780-109. Violations and penalties; remedies; enforcement.

- A. Preventive remedies. In addition to other remedies, the County or a municipality may institute and maintain actions by law or in equity to restrain, correct or abate violations of this chapter, to prevent unlawful construction, to recover damages and to prevent illegal occupancy of a building, structure or premises.
- (1) No exemption in metes and bounds descriptions. The description by metes and bounds in the instrument of transfer or other documents used in the process of selling or transferring shall not exempt the seller or transferor from the penalties or remedies provided.
 - (2) Further development not permitted. The County or a municipality in which a violation of this chapter occurs may refuse to issue any permit or grant any approval necessary to further improve or develop real property which has been developed or which has resulted from a subdivision of real property in violation of this chapter. The authority to deny such a permit or approval shall apply to any of the following applicants:
 - (a) The owner of record at the time of such violation.
 - (b) The vendee or lessee of the owner of record at the time of such violation without regard as to whether such vendee or lessee had actual or constructive notice of the violation.
 - (c) The current owner of record who acquired the property subsequent to the time of violation without regard as to whether such current owner had actual or constructive knowledge of the violation.
 - (d) The vendee or lessee of the current owner of record who acquired the property subsequent to the time of violation without regard as to whether such vendee or lessee had actual or constructive knowledge of the violation.
 - (3) Compliance with chapter required for permit. As an additional condition for issuance of a permit or the granting of an approval for any such owner, current owner, vendee or lessee for the development of any such real property, the County and/or municipality may require compliance with the conditions that would have been applicable to the property at the time the applicant acquired an interest in such real property.
- B. Enforcement remedies.
- (1) Initial jurisdiction. District Justices shall have initial jurisdiction in proceedings brought under this section.
 - (2) Judgment. Any person, partnership or corporation who or which has violated the provisions of this chapter shall, upon being found liable therefor in a civil enforcement proceeding commenced by the County, pay a judgment of not more than \$500, plus all court costs, including reasonable attorney fees incurred by the County as a result thereof.
 - (a) No judgment shall commence or be imposed, levied or be payable until the date of the determination of a violation by the District Justice.
 - (b) If the defendant neither pays nor timely appeals the judgment, then the County may enforce the judgment pursuant to the applicable rules of civil procedure.
 - (c) Each day that a violation continues shall constitute a separate violation unless the District Justice determining that there has been a violation further determines that there was a good

faith basis for the persons, partnership or corporation violating this chapter to have believed that there was no such violation, in which event there shall be deemed to have been only one such violation until the fifth day following the date of the determination of a violation by the District Justice, and thereafter, each day that a violation continues shall constitute a separate violation.

- (3) Stay of judgment. The Court of Common Pleas, upon petition, may stay the occurrence of a per-day or daily violation during the pendency of any appeal in accordance with MPC § 515.3(b).³
- (4) Enforcement by County. Nothing in this section shall be construed or interpreted to grant to any person or entity other than the County the right to commence any action for enforcement pursuant to this section.

3. Editor's Note: See 53 P.S. § 10515.3(b).

ARTICLE II
Definitions

§ 780-201. General terms.

Unless otherwise expressly stated, the following terms shall have the meaning indicated below:

- A. Words and phrases used in the singular include the plural, and words and phrases used in the plural include the singular.
- B. Gender-specific pronouns or references shall refer to all genders.
- C. The word "person" indicates any person or any corporation, unincorporated association, partnership, estate or other legal entity.
- D. The word "lot" includes the word "plot" or "parcel."
- E. The word "structure" includes "building," and the use of either word shall be construed as if followed by the phrase "or a part thereof."
- F. The word "may" is permissive; the words "shall" and "will" are mandatory.
- G. Periods of time stated as a number of days refer to consecutive calendar days, unless specified as "working days."
- H. Words in the present tense include the future tense.

§ 780-202. Specific terms.

Other terms or words used in this chapter are defined as follows:

ACCESS DRIVE — See "street."

ACCESSORY BUILDING — See "building, accessory."⁴

ALLEGHENY COUNTY COMPREHENSIVE PLAN — A document entitled "Allegheny Places," including the text maps and supplemental information adopted by resolution of the Allegheny County Council on November 5, 2008, and as may be amended from time to time.

ALLEGHENY COUNTY DEPARTMENT OF PUBLIC WORKS (ACDPW) — The administrative agency charged with the responsibilities of engineering, construction and management of County-owned facilities, vehicles and equipment.

ALLEGHENY COUNTY HEALTH DEPARTMENT (ACHD) — The agency designated to administer and enforce the health and sanitation regulations of the Allegheny County Code.

ALLEY (SERVICE STREET) — See "street."

APPLICANT — A developer and/or landowner, as hereinafter defined, including heirs, successors and assigns, who has filed an application for subdivision and/or land development.

APPLICATION — Every application, whether preliminary or final, required to be filed for the approval of a subdivision plat or plan or for the approval of a development plan.

ARCHITECT — An architect, registered by the Commonwealth of Pennsylvania. See "registered

4. Editor's Note: See Subsection A in the definition of "building."

professional."

ARTERIAL STREET — See "street."

BEST MANAGEMENT PRACTICES — The methods, measures or practices to prevent or reduce the amount of pollution from point or nonpoint sources, including structural controls, nonstructural controls and operation and maintenance procedures.

BIKEWAY — Either of the following:

- A. BICYCLE LANE — A lane at the edge of a street cartway or shoulder reserved and marked for the exclusive use of bicycles.
- B. BICYCLE PATH — A pathway, separated from the street cartway or shoulder, designed for the use of bicycles.

BIODIVERSITY or BIOLOGICAL DIVERSITY — The variety and abundance of species, their genetic composition and the communities, ecosystems and landscapes in which they occur.

BLOCK — A unit of land containing one or more lots, bounded by existing or proposed streets, waterways, railroads, public lands or other barriers to contiguous development.

BUFFER YARD — A portion of a site, together with any structures or plantings, intended to provide a visual barrier or other protection between adjacent parcels of land.

BUILDING — Any enclosed or open structure having a roof supported by columns, piers, or walls.

- A. BUILDING, ACCESSORY — A detached, subordinate building, the use of which is customarily incidental and subordinate to that of the principal building and located on the same lot as the principal building. Farm buildings not intended for habitation are considered to be accessory buildings.
- B. BUILDING, PRINCIPAL — A building in which the primary use of the lot on which the building is located is carried on.

BUILDING SETBACK LINE — A line within a lot, parallel to the street line, designated on a plan as the minimum required distance between a building and the street center line or right-of-way line as specified by any applicable zoning ordinance.

BULB-OUT — A bulb-out, or curb extension, is a traffic-calming measure which narrows the roadway width and serves multiple purposes, including reducing speeds, reducing pedestrian crossing distances, improving visibility of pedestrians at crossings, and defining on-street parking.

CAPACITY — When used in reference to a street, the maximum traffic volume for which such street can provide adequate service.

CARTWAY — The portion of a street, drive or alley that is available for vehicular traffic.

CLEAR SIGHT TRIANGLE — An area of unobstructed vision at a street intersection defined by lines of sight between specific points on the center lines of the intersecting streets.

COLLECTOR STREET — See "street."

COMMON OPEN SPACE — A parcel or parcels of land or an area of water or a combination of land and water within a development site and designed and intended for the use or enjoyment of residents of a development, not including streets, off-street parking areas and areas set aside for public facilities.

COMPLETE STREETS — A policy to ensure that the entire right-of-way is routinely designed and operated to enable safe access for all users. Pedestrians, bicyclists, motorists, and transit riders of all ages and abilities can safely move along and across a complete street.

COMPREHENSIVE PLAN — A document consisting of maps, charts and text, prepared in accordance with Article III of the Municipalities Planning Code and adopted by a municipality or County as a guide for future development.

COMPREHENSIVE PLAN, COUNTY — See "Allegheny County Comprehensive Plan."

CONDOMINIUM — A form of real property ownership which combines a system of separate ownership of individual units of occupancy with a system of undivided interests in land and common facilities.

CONGESTION — The level at which transportation system performance is no longer acceptable to the traveling public due to traffic interference. The level of acceptable system performance may vary by type of transportation facility, geographic location, public tolerance and/or time of day.

CONSERVATION EASEMENT — A legal document that provides specific land use rights to a secondary party. A perpetual conservation easement usually grants conservation and management rights to a party in perpetuity.

CONSISTENCY — An agreement or correspondence between matters being compared which denotes a reasonable, rational, similar connection or relationship.

CONSISTENCY, GENERAL — That which exhibits consistency.

COUNTY — Allegheny County, Pennsylvania, a home rule municipality.

COUNTY COUNCIL — The legislative branch of Allegheny County government established by the Allegheny County Home Rule Charter.

COUNTY EXECUTIVE — The executive branch of Allegheny County government established by the Allegheny County Home Rule Charter.

COUNTY PLANNING AGENCY — The Allegheny County Department of Economic Development.

CRITICAL ROOT ZONE — A circular area measured from the trunk of a tree, in which roots critical to the survival of the tree shall be protected. The critical root zone shall be equal to the tree's dripline plus one foot.

CROWN — The part of the tree that consists of branches, stems and leaves.

CUL-DE-SAC — See "street."

CULTURAL FACILITIES — Buildings, sites, objects or structures owned and operated by a public or non-profit agency, including but not limited to libraries, museums, historic sites, public buildings, churches, hospitals, nursing homes, social, fraternal or community clubs or organizations and similar facilities.

DBH — The diameter of a tree trunk at breast height, measured at 4.5 feet above natural grade.

DECISION — Final decision of the governing body granted jurisdiction by this chapter to do so, either by reason of the grant of exclusive jurisdiction or by reason of appeals from determinations. All decisions shall be appealable to the Court of Common Pleas and judicial district.

DEDICATION — The deliberate appropriation of land by its owner for general public use.

DEED — A written instrument whereby an estate in real property is conveyed.

DEED RESTRICTION — A restriction upon property placed in a deed.

DENSITY — The number of dwelling units per unit area of land.

DEPARTMENT — The Allegheny County Department of Economic Development, the designated "planning agency" for the County which performs the functions of a planning agency as described in the

Pennsylvania Municipalities Planning Code for the purpose of administering this chapter.

DEPARTMENT OF CONSERVATION AND NATURAL RESOURCES (DCNR) — The agency designated to maintain and preserve state parks, manage state forestland and provide technical assistance related to the rivers, trails, greenways, local parks, regional heritage parks, and natural areas of the Commonwealth of Pennsylvania.

DETENTION BASIN — A man-made or natural facility designed to collect surface water in order to impede its flow and to release it gradually in accordance with an adopted stormwater management plan.

DEVELOPER — Any landowner, agent of such landowner or tenant with the permission of the landowner who makes or causes to be made a subdivision of land or a land development.

DEVELOPMENT OF REGIONAL SIGNIFICANCE AND IMPACT — Any land development that, because of its character, magnitude or location, will have a substantial effect upon the health, safety or welfare of citizens in more than one municipality.

DEVELOPMENT PLAN — The provisions of development of a planned residential development, a plat of subdivision or land development, including all covenants relating to use, location and bulk of buildings and other structures, intensity of use or density of development, streets, ways and parking facilities, common open space and public facilities. The phrase "provisions of the development plan," when used in this chapter, shall mean the written and graphic materials referred to in this definition.

DIRECTOR OF PLANNING (DIRECTOR) — The Director of the Allegheny County Department of Economic Development or his or her designee.

DRAINAGE EASEMENT — The land required for the installation of storm sewers or other drainage facilities, or along the floodway of a natural stream or watercourse, or to safeguard the public against flood damage.

DRIVEWAY — A private drive providing access between a public or private street or access drive and the parking area for a single residential dwelling unit. A shared driveway is a private drive serving two residential dwelling units.

EARTH DISTURBANCE — Any construction or other activity which disturbs the surface of the land, including, but not limited to, excavations, embankments, depositing or storing soil, rock or earth, clearing vegetation, tilling soil, or any other activity which may cause erosion.

EASEMENT — A right-of-way for limited use of property granted by a landowner, within which the owner shall not have the right to make use of the property in a manner that violates the right of the grantee.

ECOSYSTEM — A functional system which includes the organisms of a natural community together with their environment.

ENGINEER — A professional engineer registered by the Commonwealth of Pennsylvania. See "registered professional."

EROSION — The detachment and movement of soil or rock fragments, or the wearing away of the surface of the land by wind, water, ice or gravity.

EROSION AND SEDIMENTATION CONTROL PLAN — A narrative and set of plans developed to minimize accelerated erosion and prevent sedimentation damage. In accordance with Design Manual, Part 2, Chapter 13, and PADEP Erosion and Sediment Pollution Control Program Manual, these plans are prepared in conjunction with construction staging plans, detailing what erosion control measures must be in place at all times during various construction stages and phases.

FILL — Material, usually soil, used to raise or change the surface contour of an area, to construct an

embankment or to be placed within a stone or concrete arch bridge.

FINAL PLAN — The plan of a proposed subdivision or land development, including all supplemental information required by this chapter or by an applicable municipal ordinance to obtain final approval and in a form acceptable for recording in the Department of Real Estate.

FINANCIAL SECURITY — Any financial security which may be accepted in lieu of certain improvements being made prior to approval and recording of a final plan, pursuant to Section 509 of the Pennsylvania Municipalities Planning Code.⁵

FLOODPLAIN — Land adjoining a river or stream that has been or may be expected to be inundated by the floodwaters of the river or stream, or any area subject to the unusual and rapid accumulation of surface waters from any source. Floodplains include any areas delineated within the one-hundred-year flood boundary or as a special flood hazard area on a map prepared by the Federal Emergency Management Agency (FEMA).

FLOODPROOFING — Any combination of structural and/or nonstructural additions or changes to structures or contents which are designed to reduce or eliminate flood damage to those structures or contents.

FLOODWAY — The channel of a watercourse and portions of the adjoining floodplain that are reasonably required to carry and discharge the one-hundred-year design flood. Unless otherwise specified, the boundary of the one-hundred-year floodway is as indicated on maps and flood insurance studies provided by the Federal Emergency Management Agency (FEMA).

FLOOR AREA — Total gross area of all floors enclosed within the exterior walls of any building, including accessory buildings and including any areas that may be enclosed by temporary exterior walls such as garage doors or removable solarium glass enclosures, or as defined in an applicable municipal zoning ordinance.

FOOTCANDLE — A unit of light density incident on a plane (assumed to be horizontal unless otherwise specified), measurable with an illuminance meter (also known as a "light meter").

FREEBOARD — The difference between the elevation of the design flow in the emergency spillway (usually the one-hundred-year peak elevation) and the top elevation of the settled basin embankment (that is, top of berm). Minimum freeboard shall be one foot.

FULL-CUTOFF LUMINAIRE — An attribute of a lighting fixture from which no light is emitted at or above a horizontal plane drawn through the bottom of the fixture and no more than 10% of the lamp's output is emitted at or above an angle 10° below the horizontal plane, at all lateral angles around the fixture. By definition, a full-cutoff luminaire is also fully shielded.

FULLY SHIELDED LUMINAIRE — An attribute of a luminaire from which no light is emitted at or above a horizontal plane drawn through the lowest light-emitting portion of the luminaire.

GEOGRAPHIC INFORMATION SYSTEM (GIS) — A computerized system of compiling, presenting and analyzing geographic-based data.

GEOTECHNICAL ENGINEER — A professional engineer licensed as such by the Commonwealth of Pennsylvania who has training and experience in geotechnical engineering.

GLARE — Excessive brightness in the field of view that is sufficiently greater than that to which the eyes are adapted, to cause annoyance or loss in visual performance and visibility so as to jeopardize health, safety or welfare.

5. Editor's Note: See 53 P.S. § 10509.

GRADE — The inclination of the land's surface from the horizontal, as it exists or as rendered by cut and/or fill activities. "Road grade" refers to the rate of rise and fall of a road surface, measured along the center line of the cartway.

GRADING PLAN — A plan to be prepared and submitted with an application for development whenever any earth disturbance is proposed.

GREENPRINT — A map identifying highly functional land areas that harbor biological diversity, manage water resources, and maintain the region's scenic landscape character. The greenprint is incorporated into the Allegheny Places Greenway Map as a top priority for conservation.

GREENWAY — A linear open space established along either a natural corridor such as a river front or stream valley or ridgeline or over land along a railroad right-of-way converted to recreational use, a canal, a scenic road or other route, including:

- A. Any natural or landscaped course for pedestrian or bicycle passage;
- B. An open space connector linking parks, natural reserves, cultural features or historic sites with each other and with populated areas; and
- C. Locally, a certain strip or linear park designated as a parkway or greenbelt.

GROUNDWATER — Naturally occurring water that moves through the earth's crust, usually at a depth of several feet to several hundred feet below the earth's surface.

HAMMERHEAD TURNAROUND — A paved area at the end of a dead-end street where the cartway branches in two directions, providing sufficient space for vehicles to execute three-point turning maneuvers without entering the driveways of any lots abutting the street.

HIGHWAY OCCUPANCY PERMIT — A permit issued by the Pennsylvania Department of Transportation to private landowners to occupy Commonwealth of Pennsylvania property designated for transportation uses; typically for access or utilities.

HISTORIC FEATURE —

- A. Any building, site, structure, object, district or area that:
 - (1) Is listed in the National Register of Historic Places.
 - (2) Has received a determination of eligibility for the National Register from the National Park Service.
 - (3) Is listed on any officially adopted municipal, County or state register or inventory of historic features.
- B. This term shall include the site, structures, yards, vegetation, fences, road alignments and signage associated with such features.

HYDRIC SOIL — Soil that is saturated, flooded or ponded long enough during the growing season to develop anaerobic conditions in the upper part.

ILLUMINANCE — Quantity of incident light measured in footcandles.

IMPROVEMENT — Physical changes to land, including, but not limited to, grading, removal of vegetation, buildings, landscaping, pavement, curbs, gutters, storm sewers and drains, changes to existing watercourses, sidewalks, street signs, monuments, water supply facilities and sewage disposal facilities.

INDIGENOUS PLANT SPECIES — Plant species naturally occurring in a particular region or

environment and having been identified as existing in the region before the influence of humans.

INVASIVE PLANT SPECIES — Plant species brought into a particular region or environment through transportation by humans and having adapted to the region or environment to the detriment of the indigenous species.

LAND DEVELOPMENT — Any of the following:

- A. The improvement of one lot or two or more contiguous lots, tracts, or parcels of land for any purpose involving:
 - (1) A group of two or more residential or nonresidential buildings, whether proposed initially or cumulatively, or a single nonresidential building on a lot or lots regardless of the number of occupants or tenure.
 - (2) The division or allocation of land or space, whether initially or cumulatively, between or among two or more existing or prospective occupants by means of, or for the purpose of, streets, common areas, leaseholds, condominiums, building groups, or other features.
- B. A subdivision of land. (See "subdivision.")
- C. Land development shall not include:
 - (1) The conversion of an existing single-family detached dwelling or single-family semidetached dwelling into not more than three residential units, unless such units are intended to be a condominium.
 - (2) The addition of an accessory building, including farm buildings, on a lot or lots subordinate to an existing principal building.
 - (3) The addition or conversion of buildings or rides within the confines of an enterprise which would be considered an amusement park. For purposes of this subsection, an "amusement park" is defined as a tract or area used principally as a location for permanent amusement structures or rides. This exclusion shall not apply to newly acquired acreage by an amusement park until initial plans for the expanded area have been approved.

LAND DEVELOPMENT, MINOR — Any of the following:

- A. An addition to an existing building, where such addition will occupy less than 5,000 square feet of land area.
- B. An expansion of an existing parking lot that will add 25 or fewer parking spaces.

LANDOWNER — The legal or beneficial owner or owners of land, including the holder of an option or contract to purchase (whether or not such option or contract is subject to any conditions), a lessee (if he is authorized under the lease to exercise the right of the landowner), or other person having a proprietary interest in land.

LANDSCAPE ARCHITECT — A landscape architect registered by the Commonwealth of Pennsylvania. See "registered professional."

LANDSLIDE-PRONE AREA — Land that is susceptible to movement or sliding, as identified in the Soil Survey of Allegheny County, prepared by the Soil Conservation Service⁶ of the United States Department of Agriculture; or as identified on the Landslide Susceptibility Map of Allegheny County; or as identified

6. Editor's Note: Now the Natural Resources Conservation Service.

in the Mining and Physiographic Study, Allegheny County, Pennsylvania, prepared by A.C. Ackenheil & Associates; or as established by geotechnical investigation.

LANDSLIDE SUSCEPTIBILITY MAP OF ALLEGHENY COUNTY — A map delineating areas judged to be susceptible to landsliding or movement, prepared by the United States Geological Survey on 7.5-minute quadrangle maps of the County in 1974.

LAND USE — Any activity, business, function or purpose for which any piece of land or structure is used or intended to be used.

LEVEL-OF-SERVICE (LOS) — A qualitative measure describing operational conditions within a traffic stream; generally described in terms of such factors as speed, freedom to maneuver, traffic interruptions, comfort, convenience and safety. Levels of service are designated A through F, with LOS A indicating the best service and LOS F indicating the worst.

LIGHT TRESPASS — Light emitted by a lighting fixture or installation which is cast beyond the boundaries of the property on which the lighting installation is sited.

LOCAL ACCESS STREET — See "street."

LOT — A designated parcel, tract or area of land established by a plat or otherwise permitted by law and to be used, developed or built upon as a unit.

LOT AREA — The area contained within the property lines of the individual parcel of land, excluding space within a street right-of-way, or as specified in the Municipal Zoning Ordinance.

LOT DEPTH — The average distance between the street right-of-way and the rear lot line, measured perpendicular or radial to the right-of-way.

LOT FRONTAGE — The width of a lot measured along the street line.

LOT WIDTH — The horizontal distance between side lot lines, measured at the required setback line.

LOT, YARD — An area within a lot between the building setback lines and the lot lines.

LUMEN — A measure of the power of light perceived by the human eye. The light output rating of a light bulb.

MARGINAL ACCESS STREET — See "street."

MEDIATION — A voluntary negotiating process in which parties in a dispute mutually select a neutral mediator to assist them in jointly exploring and settling their difference, culminating in a written agreement which the parties themselves created and consider acceptable.

MINOR LAND DEVELOPMENT — See "land development, minor."

MINOR SUBDIVISION — See "subdivision, minor."

MITIGATION — The replacement of natural features which have been lost or reduced in value.

MONUMENT — A concrete, stone or other permanent object placed to designate boundary lines, corners of property and rights-of-way of streets and utilities, for the purpose of reference in land and property surveys.

MUNICIPAL ENGINEER — A professional engineer licensed as such in the Commonwealth of Pennsylvania, duly appointed as the engineer for a municipality, planning agency or joint planning commission.

MUNICIPAL GOVERNING BODY — The council in cities and boroughs, and incorporated towns, the board of commissioners in townships of the first class, the board of supervisors in townships of the second

class, or as may be designated in the law providing for the form of government.

MUNICIPALITIES PLANNING CODE (MPC) — Act of 1968, P.L. 805, No. 247, as reenacted and amended (53 P.S. § 10101 et seq.), which empowers municipalities to plan for their development and to govern the same by zoning, subdivision and land development ordinances and official maps, to promote conservation of energy and to establish planning agencies and zoning hearing boards.

MUNICIPALITY — Any city, borough, township or other similar general purpose unit of government, excluding County government.

NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES) PERMIT — The permit mandated by Section 402 of the Clean Water Act⁷ for projects that involve the discharge of pollutants from a point source into surface waters (including wetlands) for disposal purposes which is intended to regulate the amount of chemicals, heavy metals and biological waste discharged in wastewater, administered under the Pennsylvania Clean Streams Law.⁸

NATURAL RESOURCES — Land, fish, wildlife, drinking water supplies and other assets belonging to, maintained by or otherwise controlled by the federal, state or local government.

NET DENSITY — Net density is the number of proposed dwelling units divided by the land area not proposed for infrastructure such as the roadway network or stormwater system. For instance, if a proposed subdivision includes 100 dwelling units on 100 acres, with 20 acres being used for infrastructure, the net density is $100/(100 - 20 = 80) = 1.25$ units per acre.

NONSTRUCTURAL STORMWATER MANAGEMENT PRACTICES — Passive site design approaches or regulatory approaches that positively impact water quality and reduce the generation of stormwater runoff without requiring the construction of specific or discrete stormwater management control structures.

OFFICIAL MAP — A map adopted pursuant to Article IV of the Pennsylvania Municipalities Planning Code. An Official Map is a combined map and ordinance designed to implement the goals and community vision set forth in the Comprehensive Plan. The Official Map shows the locations of planned future public lands and facilities, such as transportation, recreational parks and trails, and open space. The Official Map expresses a municipality's interest in acquiring these lands for public purposes sometime in the future.

OPEN SPACE — Any parcel or area of land or water essentially unimproved and set aside, dedicated, designated or reserved for public or private use or enjoyment, or for the use and enjoyment of owners, occupants and their guests, of land adjoining or neighboring such open space.

ORDINANCE — The Allegheny County Subdivision and Land Development Ordinance of 2012 (this chapter).

PARCEL — See "lot."

PEAK TRAFFIC HOUR — The hour during which the heaviest volume of traffic occurs.

PENNSYLVANIA STORM WATER MANAGEMENT ACT — The Pennsylvania Storm Water Management Act,⁹ hereinafter referred to as PA Act 167, requires municipalities to adopt and implement ordinances to regulate development consistent with adopted watershed stormwater management plans.

PLANNING AGENCY — A planning commission, planning department or planning committee of the governing body.

PLAT — The map or plan of a subdivision or land development, whether preliminary or final.

7. Editor's Note: See 33 U.S.C. § 1342.

8. Editor's Note: See 35 P.S. § 691.1 et seq.

9. Editor's Note: See 32 P.S. § 680.1 et seq.

PLAT ADJUSTMENT — See "subdivision, plat adjustment."

PRELIMINARY PLAN — The plan of a proposed subdivision or land development, including all supplementary information required by this chapter or applicable municipal ordinance to obtain preliminary approval.

PROFESSIONAL CONSULTANTS — Persons who provide expert or professional advice, including, but not limited to, architects, attorneys, certified public accountants, engineers, geologists, land surveyors, landscape architects or planners.

PUBLIC HEARING — A formal meeting held pursuant to public notice, intended to inform and obtain public comment, prior to taking action in accordance with this chapter.

PUBLIC MEETING — A forum held pursuant to notice under the Act of July 3, 1986 (P.L. 388, No. 84), known as the "Sunshine Act."¹⁰

PUBLIC NOTICE — A notice published once each week for two successive weeks in a newspaper of general circulation in the County. The notice shall state the time and place of a hearing and the particular nature of the matter to be considered at the hearing. The first publication shall not be more than 30 days and the second publication shall not be less than seven days from the date of the hearing.

PUBLIC WATER SYSTEM — A system which provides water to the public for human consumption which has at least 15 service connections or regularly serves an average of at least 25 individuals daily at least 60 days out of the year. The term includes any collection, treatment, storage and distribution facilities under control of the operator of the system and used in connection with the system. The term includes collection or pretreatment storage facilities not under such control which are used in connection with the system. The term also includes a system which provides water for bottling or bulk hauling for human consumption.

RECORD PLAN — A final plan which contains the original endorsement of the municipality and the Department, which is intended to be recorded with the Allegheny County Department of Real Estate.

REGISTERED PROFESSIONAL — An individual licensed in the Commonwealth of Pennsylvania to perform services or activities required by provisions of this chapter and qualified by training and experience to perform the specific services and/or activities with technical competence.

RESERVED AREAS — Lands held for future public use by designating a lot or parcel for such future use on a plat for recording.

RIGHT-OF-WAY — Land reserved or dedicated for use as a street, pedestrianway or other means of public or private transportation or for an electric transmission line, oil or gas pipeline, water main, sanitary or storm sewer, or other special use. A right-of-way includes the entire area reserved or dedicated for the use.

RIPARIAN — Pertaining to anything connected with or immediately adjacent to the banks of a waterway.

ROUNDABOUT — An intersection traffic control treatment utilized throughout the world. Roundabouts form circular intersections in which entering traffic is required to yield to circulating traffic.

RUNOFF — The surface water after a rain or snow that does not enter the soil but runs off the surface of the land.

SEDIMENTATION — The process by which soil or other surface material is accumulated or deposited by wind, water or gravity.

10. Editor's Note: See now 65 Pa.C.S.A. § 701 et seq.

SETBACK LINE — See "building setback line."

SHIELDED LUMINAIRE — A luminaire from which no direct glare is visible at normal viewing angles by virtue of its being properly aimed, oriented and located and properly fitted with such devices as shields, barn doors, baffles, louvers, skirts or visors.

SIGHT DISTANCE — The length of road visible to the driver of a vehicle at any given point in the road when viewing is unobstructed by traffic.

SKETCH PLAN — An informal plan, for use in a preapplication meeting, prepared in accordance with § 780-401 of this chapter.

SOILS ENGINEER — A professional engineer licensed as such and registered by the Commonwealth of Pennsylvania who has training and experience in soils engineering.

SOIL SURVEY OF ALLEGHENY COUNTY — A series of aerial photographs on which soils are classified according to a variety of characteristics and accompanying explanatory text, prepared by the United States Department of Agriculture, Soil Conservation Service, August 1981. (Note: The Soil Conservation Service is now the Natural Resources Conservation Service.)

STEEP SLOPE — Any land area with a grade that exceeds four horizontal to one vertical (4:1), or 25%.

STORMWATER — The precipitation from rain or snowmelt that flows over the ground. Impervious surfaces like driveways, sidewalks, and streets prevent stormwater from being absorbed into the ground.

STREET — A strip of land, including the entire right-of-way, publicly or privately owned, serving primarily as a means of vehicular travel, encompassing the following types:

- A. ACCESS DRIVE — A private drive providing access between a public or private street and a parking area within a land development, or any driveway servicing two or more buildings or uses.
- B. ALLEY — A service road that provides a secondary means of through access to lots.
- C. ARTERIAL — A public street intended to carry a large volume of local and through traffic to or from collector streets and expressways.
- D. COLLECTOR — A street that collects and distributes traffic between local access and arterial streets. Such streets provide intraregional connections between residential areas and shopping areas, employment centers and other local traffic generators.
- E. CUL-DE-SAC — A street with a single means of ingress and egress and a turnaround.
- F. LOCAL — A street that provides access to abutting property and connections to collector streets.
- G. MARGINAL ACCESS STREET — A service street that runs parallel to a higher-order street and provides access to abutting properties and separation from through traffic.

STREET, PRIVATE — A street not accepted for dedication by a municipality.

STREET, PUBLIC — A street accepted for dedication by a municipality.

STRUCTURAL STORMWATER MANAGEMENT PRACTICES — Any stormwater management measure that requires the design and construction of one or more specific or discrete structures to reduce or eliminate stormwater runoff.

STRUCTURE — Any man-made object having an ascertainable stationary location on or in land or water, whether or not affixed to the land.

SUBDIVISION — The division or redivision of a lot, tract, or parcel of land by any means into two or

more lots, tracts, parcels or other divisions of land, including changes in existing lot lines for the purpose, whether immediate or future, of lease, partition by the court for distribution to heirs or devisees, transfer of ownership or building or lot development; provided, however, that the subdivision by lease of land for agricultural purposes into parcels of more than 10 acres, not involving any new street or easements of access or any residential dwelling, shall be exempted.

SUBDIVISION, MINOR — A subdivision of land into not more than four lots, not requiring any new street or access easement.

SUBDIVISION, PLAT ADJUSTMENT — Any of the following:

- A. Adjustment of lot lines between lots where no new lots are created.
- B. Consolidation of lot lines.
- C. Survey corrections.
- D. Final survey of property lines for townhouses and other attached dwellings after construction when in conformance with previously recorded plan.

SUBSTANTIALLY COMPLETED — Where, in the judgment of the Municipal Engineer, at least 90% (based on the cost of the required improvements for which financial security was posted) of those improvements required as a condition for final approval have been completed in accordance with the approved plan, so that the project will be able to be used, occupied or operated for its intended use.

SURVEYOR — A surveyor registered by the Commonwealth of Pennsylvania. See "registered professional."

TRIP — A single or one-directional vehicle movement.

USE — See "land use."

WATERCOURSE — A channel or conveyance of surface water having defined bed and banks, whether natural or artificial, with perennial or intermittent flow.

WATERSHED — All land and water within the confines of a drainage basin.

WATER SURVEY — An inventory of the source, quantity, yield and use of groundwater and surface water resources within a municipality.

WELLHEAD PROTECTION AREA — A designated area of the land surface which, through recharge or other means, provides water to sustain the yield of a protected public water supply well.

WETLAND — Any area defined as a wetland by the Federal Manual for Identifying and Delineating Jurisdictional Wetlands.

WOODLANDS — An area of trees whose total combined canopy covers one acre or more, in which at least 70% of the canopy trees have a DBH of 2.5 inches or more. Woodlands may also include tree plantations for commercial or conservation purposes and groves or stands of trees covering less than one acre. Categories of woodlands shall be as follows:

- A. **GROVES AND STANDS** — A contiguous grouping of eight or more individual trees having a DBH of at least 12 inches and whose combined canopy covers at least 50% of the area encompassed by the grove and which is not located within a woodland.
- B. **MATURE WOODLAND** — An area of trees whose total combined canopy covers one acre or more, in which at least 50% of the canopy trees have a DBH of 10 inches or more.

YARD — See "lot, yard."

ARTICLE III

Procedures for Review, Approval and Recording of Plans**§ 780-301. Purpose; organization; fees and disputes.**

- A. Purpose. This Article III specifies procedures for review and approval of proposed subdivisions and land developments and for the recording of plans after their approval.
- B. Organization of article.
- (1) Advisory review procedures. Section 780-302 includes procedures for review of plans located in municipalities which have enacted subdivision and land development regulations. In these municipalities, the Department provides advisory review.
 - (2) Review and approval procedures. Section 780-303 specifies procedures for review and approval of plans located in municipalities which have not enacted subdivision and land development regulations. In these municipalities, the Department is responsible for the approval of plans.
 - (3) Abbreviated procedures for minor plans and plat adjustments. Abbreviated review or review and approval procedures are offered for plans which are defined in Article II as minor subdivisions, minor land developments, or plat adjustments. These procedures are specified in § 780-304.
 - (4) Procedures for recording. Section 780-305 contains requirements for recording subdivision and land development plans in the office of the Department of Real Estate.
 - (5) Summary of procedures and requirements. A chart that summarizes which basic procedures and requirements contained in this chapter apply to land use applications in municipalities that have enacted a subdivision and land development ordinance; and which apply to land development applications in municipalities that have not enacted a land development ordinance is provided in Appendix 8.¹¹
- C. Fees and disputes of fees.
- (1) Applications for review and approval shall be accompanied by a review fee paid by the applicant, which shall be in accordance with a schedule of fees established by resolution of the County Council.
 - (2) Review by professional consultants. The Department may refer the application for review by one or more of its professional consultants. The applicant shall pay the fees for such reviews. Application review fees shall include reasonable and necessary charges by the County's professional consultants for review and report on the application to the County. Such review fees shall be based upon a schedule established, from time to time, by resolution of County Council. Such review fees shall be reasonable and in accordance with the ordinary and customary charges by the professional consultants for similar services provided to the County, but in no event shall the fees exceed the rate or cost charged by the professional consultants to the County when fees are not reimbursed or otherwise imposed on applicants. Fees charged to the County relating to the appeal of any decision on an application shall not be considered review fees and shall not be charged to the applicant.
 - (3) Billing for review fees. The Director shall submit to the applicant an itemized bill showing work performed, identifying the person performing the services and the time and date spent for each

11. Editor's Note: Appendix 8 is included at the end of this chapter.

task. Nothing in this subsection shall prohibit interim itemized billing or county escrow or other security requirements.

- (4) In the event an applicant disputes the amount of review fees, the applicant shall, no later than 45 days after transmittal of the fees, notify the County that such fees are disputed. The applicant shall explain the basis of his or her objections to the fees charged, in which case the application shall not be delayed or disapproved due to the applicant's dispute over fees. Failure of the applicant to dispute the fees within 45 days shall be a waiver of the applicant's right to arbitration as established by MPC § 510(g).¹²
- (5) In the event that the County's professional consultant and the applicant cannot agree on the amount of review fees which are reasonable and necessary, then the applicant and the County shall follow the procedure for dispute resolution for inspection fees set forth in Section 510(g)(2) through (5) of the MPC,¹³ provided that the arbitrator resolving such dispute shall be of the same profession or discipline as the professional consultant whose fees are being disputed.

§ 780-302. Advisory review procedures.

- A. Application. The procedures specified in this section shall apply to the review of all subdivision and land developments located in municipalities which have enacted subdivision and land development regulations.
- B. Transmittal of applications for preliminary review. A complete copy of an application for preliminary approval of a subdivision or land development plan shall be forwarded upon receipt by the municipality to the Department.
 - (1) How to submit. Applications may be submitted on any business day.
 - (a) Notice of transmittal. Applications must be accompanied by a cover letter or transmittal notice, addressed to the Director of the Department, which notes the date of forwarding and the signature of the municipal official who transmits the application. If an application is mailed, the date of forwarding shall be the date of postmark.
 - (b) Application form. Applications must include a copy of the Department's form entitled "Subdivision and Land Development Application" which has been completed by the applicant.
 - (c) Review fee. Applications for review shall be accompanied by a review fee paid by the applicant, which shall be in accordance with a schedule of review fees established by resolution of the County Council. The review fee shall be in the form of a check or money order payable to the Treasurer of Allegheny County. In the event an applicant disputes the review fee, the County and applicant will follow the procedure established in Article III, § 780-301C.
 - (2) Complete materials required. The materials forwarded shall include all drawings, plans, reports and other information submitted to the municipality and as required by the municipal subdivision and land development ordinance.

12. Editor's Note: See 53 P.S. § 10510(g).

13. Editor's Note: See 53 P.S. § 10510(g)(2) through (5).

- (a) Incomplete applications. If the application materials are incomplete or the fee has not been paid, the Department shall notify the municipality and request that additional materials be forwarded. The date on which any additional materials are received shall then become the official date of forwarding of the application.
 - (b) Review not possible. If complete materials are not submitted and the Department determines that an informed review is not possible, the Department shall notify the municipality and applicant in writing of the determination that a review cannot be provided because a complete application has not been forwarded.
- C. Review of preliminary applications. Within 30 days of the date of forwarding of a complete application, the Department shall review the application for approval of the preliminary plan of subdivision or land development and shall transmit its comments in writing to the municipal official who transmitted the application.
 - (1) Copies of review. At the option of the Department, a copy of the review may be sent to the applicant and/or to any municipality or agency that may have interest in the project and in the Department's review.
 - (2) Defects specified. The review shall note whether or not the application meets all requirements of the municipal regulations and shall specify the specific provisions of the municipal ordinances which have not been met.
 - (3) Additional comments. The review may also comment on planning aspects of the proposed project which are not specifically addressed by the municipal regulations, including, but not limited to, the relationship of the proposed subdivision or land development to the Municipal Comprehensive Plan, to existing and planned development and comprehensive plans in adjacent municipalities, and to the County Comprehensive Plan or components thereof.
 - (4) Alternative standards. The review may recommend alternative standards or design of development if the Department determines that the application of alternative requirements or design would result in more efficient or economic utilization of the site, less damage to the natural environment, improved safety or convenience, and that the recommended alternative standards or design are in accordance with modern and evolving principles of site planning and development.
- D. Transmittal of applications for final review. The procedure for review of applications for final approval of subdivisions and land developments shall be one of the following:
 - (1) If revised. If changes are made in the plan after preliminary approval, the municipality shall forward a complete copy of the application upon receipt, with all supporting plans and materials, to the Department for review in accordance with the procedures specified in Subsection B above, except that a fee shall not be required.
 - (a) Final review period. The Department shall review an application for final approval following the procedures and time period specified for preliminary review in Subsection C above.
 - (b) Plan for recording. After final approval by the municipality, the plans prepared for recording, including all required signatures, shall be returned to the Department for signature, in accordance with Subsection D(2)(a) and (b) below.
 - (2) If not revised. If no changes are made in the plan after preliminary approval, the Department

shall waive the requirement for substantive final review and will accept the final plans as prepared for recording, with all required signatures.

- (a) Review for recording requirements. The Department shall review the final, signed plan for compliance with requirements of the Department of Real Estate for the recording of plans.
 - (b) Notation of department review. If the final plan is correct in every respect, the Director shall sign the certification that the plan has been reviewed by the Department.
- E. Department signature required for recording. In accordance with Section 513(a) of the MPC,¹⁴ the Allegheny County Department of Real Estate shall not accept any plat for recording unless such plat officially notes review by the Department.
- (1) No signature without review. The Director may refuse to sign the official notation of review for any plan which was not forwarded by the municipality for review in accordance with Subsection B above and, where required, in accordance with Subsection D(1).
 - (2) No signature if materials incomplete or fee not paid. The Director may refuse to sign the official notation of review on a final plan if the preliminary or final plan submission to the Department was incomplete, or if the fee was not paid, and if the Department notified the municipality that it was not possible to provide a review, as specified in Subsection B(2) above.

§ 780-303. Review and approval in municipalities without subdivision and land development regulations.

- A. Application. The procedures specified in this section shall apply to all subdivisions and land developments in municipalities which have not enacted subdivision and land development regulations or which have adopted these regulations by reference and have designated the Department as their agency for review and approval.
- B. Preapplication meeting. The applicant may request a preapplication meeting with the Department to discuss the proposed subdivision or land development and to review the requirements of the ordinance in relation to the proposed project. A representative of the municipality where the proposed subdivision or land development is located shall be invited to attend the preapplication meeting.
- (1) Sketch plan. Prior to the meeting, the applicant is strongly encouraged to provide a sketch plan of the proposed project containing enough information to convey clearly the existing and proposed conditions of the site. The materials submitted for the preapplication meeting should be prepared in accordance with § 780-401 of this chapter but shall not constitute an application for preliminary or final approval.
 - (2) Scheduling of meeting. The Department shall review the materials and schedule the preapplication meeting within 14 consecutive days from the date of submission of the sketch plan and supporting materials. If the Department feels that additional information is needed, the fourteen-day period may be extended by mutual agreement.
 - (3) Result of meeting. Based on the Department review and discussion with the applicant, there should be a mutual understanding of the scope of the proposed development, issues that may require resolution by the applicant, municipality or County and of potential opportunities and/or impacts that may merit special attention. A written summary of the meeting and the issues

14. Editor's Note: See 53 P.S. § 10513(a).

discussed shall be provided to the applicant and subject municipality.

- (4) A preapplication meeting shall not constitute formal filing of any application for approval of a subdivision or land development, shall not bind the Department to approve any concept presented in the preapplication meeting and shall not protect any future application from subsequent changes in ordinance provisions which may affect the proposed development that may be enacted between the preapplication meeting and the filing of an application for preliminary approval of a subdivision or land development.

C. Preliminary plan review and approval.

- (1) Submission of applications. Applications may be submitted to the Department on any business day and shall include all information and plan drawings specified in Article IV, § 780-402, and Article V.
 - (a) Number of copies. Four complete copies of the application and all supporting site and plan drawings and information shall be submitted to the Department. The Department may request additional copies of the application in accordance with § 780-303C(3).
 - (b) Application form. Applications must include a copy of the Department's form entitled "Subdivision and Land Development Application" which has been completed by the applicant.
 - (c) Fee required. A filing fee, in the form of a check or money order payable to the Allegheny County Treasurer, shall accompany the application. The amount of the fee shall be in accordance with a fee schedule adopted by resolution of County Council.
 - (d) Official filing date. Once the Department certifies that the submittal is complete and that the applicable fee has been paid, the official filing date of an application shall be the date the application was submitted to the municipality.
 - [1] Within seven days of the date that the application is received in the offices of the Department, the Department shall either certify the application as complete or notify the applicant in writing that the application is incomplete. The written notification shall specify the items of required information that are lacking.
 - [2] Failure of the Department to take either of these actions within seven days shall be deemed a certification that the application is complete as submitted, unless the applicant has agreed in writing to an extension of time.
 - [3] The official filing date shall be recorded in the files of the Department, and the applicant shall be notified of the official filing date.
 - [4] Certification of the application as complete and the establishment of the filing date shall not constitute a waiver of any deficiencies or irregularities.
 - [5] After the official filing of an application and while a decision is pending, no change in any zoning, subdivision or other governing ordinance or plan shall affect the decision on the application adversely to the applicant, and the applicant shall be entitled to a decision in accordance with the provisions of the governing ordinances and plans on the official filing date.

- (2) Distribution of copies.

- (a) The Department shall forward one complete copy of the application and submission materials to the municipality in which the project is located and one copy to the municipal engineer. The applicant shall distribute a copy of the preliminary plan and of all relevant supporting documentation to all agencies which will be required to approve some aspect of the plan prior to its final approval by the Department. These agencies may include, but are not limited to:
- [1] Pennsylvania Department of Transportation (PennDOT) if the site abuts or is traversed by a state road.
 - [2] Pennsylvania Department of Environmental Protection (PADEP or DEP) for sewage facilities, stream encroachments, wetlands, contaminated sites and other environmental permits.
 - [3] Allegheny County Department of Engineering and Construction if the site abuts or is traversed by a County road or may impact a County drainage facility.
 - [4] Allegheny County Health Department for sewage facilities, water supply and air pollution approvals.
 - [5] Allegheny County Conservation District for erosion and sedimentation plan letters of adequacy and permits.
 - [6] Fire company or department.
 - [7] Water supplier.
 - [8] Sewage treatment supplier.
 - [9] Natural gas, electric, telephone and cable television suppliers.
 - [10] Postmaster for approval of new street names.
 - [11] Federal Aviation Administration and PennDOT Bureau of Aviation if the proposed development requires filing of a "Notice of Proposed Construction or Alteration."
- (b) During the plan review process, the Department may convene an interagency meeting with one or more of these reviewing agencies to discuss issues relevant to the application.
- (3) Distribution of copies to other municipalities. The Department may also distribute copies of the preliminary plans to municipalities within 200 feet of site and to municipalities within one mile of the site, if the proposed development is expect to generate 100 or more trips during its peak hour.
- (4) Review by professional consultants. The Department may refer the application for review by one or more of its professional consultants. The procedure for determining the amount of the fee, billing and resolving disputes shall be in accordance with the provisions of § 780-301C of this chapter. The applicant shall pay the fees for such reviews.
- (5) Review meeting. The Department shall formally review the application at a public meeting held not later than 30 days after the official filing date. Public meetings will be held at the municipality in which the project is located. If the meeting cannot be accommodated in the municipality, or upon the decision of the County, the public meeting will be held at the County offices.

- (6) Optional hearing. The Department may conduct a hearing pursuant to public notice in order to inform the public and obtain comment prior to taking action on a proposed subdivision or land development.
- (7) Decision. A decision to approve the preliminary plan as submitted, to approve the plan subject to conditions, or to disapprove the plan shall be made and communicated to the applicant not later than 90 days following the date of the public meeting at which the plan was first reviewed unless the applicant agrees in writing to an extension of time or after a final order of the court remanding an application, provided that should the date of the public meeting at which the application was first reviewed occur more than 30 days following the official filing date or the final order of the court, the said ninety-day period shall commence from the 30th day following the official filing date.
 - (a) Written decision. The decision of the Department shall be in writing and shall be communicated to the applicant personally or mailed to him at his last known address not later than 15 days following the decision unless the applicant agrees in writing to a change in the manner of communication of the decision.
 - (b) Acceptance of conditions. If the application is approved subject to conditions, they shall be accepted by the applicant in writing within 15 days after the written decision of the Department was mailed or delivered to the applicant or the approval shall be automatically rescinded.
 - (c) Defects specified. If the application is not approved as filed, the decision shall specify the defects found in the application and shall cite the provisions of the ordinance which have not been met.
- (8) Deemed approval. Failure of the Department to render a decision and communicate it to the applicant in the manner and within the time period specified or as agreed to by the applicant shall be a deemed approval of the application as presented.
- (9) Effect of approval of preliminary application. When a preliminary application has been approved, the applicant shall be entitled to final approval in accordance with the terms of the approved preliminary application. Preliminary approval shall remain valid for five years. No change in this chapter or in any applicable municipal ordinance shall affect adversely the right of the applicant to commence and to complete any aspect of the approved development in accordance with the terms of such approval within five years from such approval.

D. Final plan review and approval.

- (1) Submission of applications. Applications shall be submitted in the same manner as specified for preliminary applications in Subsection C, except that a filing fee shall not be required for final plan applications.
 - (a) Intent regarding improvements. The application for final approval shall state whether the applicant intends to construct improvements prior to final approval and recording of the plat or whether the applicant intends to record the final plan and post financial security to guarantee the construction of required improvements.
 - (b) Materials required. The application for final approval shall include the plans, construction drawings and specifications, required permits and approvals, supporting documentation, all applicable review fees, and other materials as specified in Article IV, § 780-403.

- (c) Official filing date. The official filing date for an application for final approval shall be determined in the same manner as for preliminary plan approval specified in Subsection C(1)(d) above.
- (2) Distribution of copies. The Department shall forward one complete copy of the application and submission materials to the municipality in which the project is located and one copy to the engineer for the municipality.
- (3) Review by professional consultants. The Department may refer the application for review by one or more of its professional consultants. The procedure for determining the amount of the fee, billing and resolving disputes shall be in accordance with the provisions of § 780-301C of this chapter. The applicant shall pay the fees for such reviews.
- (4) Review meeting. The Department shall formally review the application at a public meeting held not later than 30 days after the official filing date.
- (5) Decision. A decision to approve the final plan as submitted, to approve the plan subject to conditions, or to disapprove the plan shall be made and communicated to the applicant not later than 90 days following the date of the public meeting at which the final application was first reviewed unless the applicant agrees in writing to an extension of time or after a final order of the court remanding an application, provided that should the date of the public meeting at which the application was first reviewed occur more than 30 days following official filing date or the final order of the court, the said ninety-day period shall commence from the 30th day following the official filing date.
- (a) Approval of the final plan. The Department shall grant final approval if all the following requirements are met:
 - [1] The application conforms with the approved preliminary plan and with any conditions attached to the preliminary approval.
 - [2] The plan either complies with all standards and requirements of this chapter or waivers or modifications have been requested, granted and documented in accordance with § 780-106.
 - [3] The municipal engineer and governing body of the municipality in which the proposed project is located must have examined the plans and construction drawings and certified that the proposed subdivision or land development is in accordance with all applicable municipal ordinances and regulations, including, but not limited to, zoning, floodplain management, stormwater management, grading and construction standards, or that any required variances or exceptions from municipal requirements have been approved and documented in accordance with applicable municipal procedures.
 - [4] All necessary permits and approvals from other governmental agencies, service providers and utility providers have been obtained, as per § 780-501D.
 - [5] All improvements have been constructed in accordance with applicable standards, inspected by the municipal engineer and approved by the municipal governing body or financial security to guarantee the construction of required improvements has been deposited with the municipality, both in accordance with Subsection F hereunder.
- (b) Conditional final approval. The Department may grant conditional approval of a final plan,

provided that any conditions shall be satisfied prior to signing and recording of the plat or shall be incorporated into a development agreement between the applicant and the municipality. If a condition will affect the use of land or any other matter depicted upon the final plan, the Department may require that the condition be noted upon and recorded with the plan.

- (c) Disapproval. The Department shall deny approval of an application for final approval of a subdivision or land development if the application does not meet all requirements of this chapter and of applicable municipal regulations; if any permits or approvals required by any other unit of government are denied; if financial security is not posted, or if improvements are not completed in accordance with the approved specifications and development agreement.
- (6) Form of decision. The decision to approve, approve with conditions or deny final approval of a subdivision or land development shall be made and communicated to the applicant in the same manner as specified for preliminary applications in Subsection C(9).
- (7) Deemed approval. Failure of the Department to render a decision and communicate it to the applicant in the manner and within the time period specified or as agreed to by the applicant shall be a deemed approval of the application as submitted.
- (8) Effect of final approval. When an application has been approved without conditions or with conditions accepted by the applicant, no change in this chapter or in any applicable municipal ordinance shall affect adversely the right of the applicant to commence and to complete any aspect of the approved development in accordance with the terms of such approval within five years from such approval.
 - (a) Where final approval is preceded by preliminary approval, the five-year period shall be counted from the date of the preliminary approval.
 - (b) If there is any doubt about the terms of a preliminary approval, the terms shall be construed in accordance with the governing ordinances at the time when the application for preliminary approval was officially filed.
 - (c) The five-year period shall be extended for the duration of any litigation, including appeals, which prevent the commencement or completion of the development or for the duration of any sewer or utility moratorium or prohibition which was imposed subsequent to the filing of an application for preliminary approval of a plat. In such instances, the provisions of MPC § 508(4)(ii) shall apply.¹⁵
- E. Phased development. If an applicant intends to develop land in phases, the preliminary plan submission shall encompass the entire land area proposed for development and shall serve as a master plan.
 - (1) Schedule for phases. The preliminary plan shall include a schedule for the submission of final plans for each section.
 - (a) The schedule shall be updated annually on or before the anniversary of the preliminary plan approval until the final plan for the final section has been approved.
 - (b) Any modifications in the schedule as first presented may be approved at the discretion of

15. Editor's Note: See 53 P.S. § 10508(4)(ii).

the Department.

- (2) Final plans for phases. Following approval of the preliminary plan for the entire land area, final plans may be submitted for each section.
 - (a) If the final plan for a section of a phased development differs from the approved preliminary plan in number of lots or buildings, intensity of development, preservation of environmental features, open space, traffic characteristics, transportation facilities or other substantive component, then an entirely new preliminary plan may be required for that section and for any other sections or components of development that may be affected by the proposed changes.
 - (b) Each section of a phased residential development except the last section shall contain at least 25% of the total number of dwellings depicted on the preliminary plan or, in the discretion of the Department, such other percentage needed to ensure an acceptable living environment for residents while development is ongoing.
 - (c) Provided that the applicant has complied with all provisions of the approved preliminary plan, including adherence to the schedule for submission of final plans for various sections, the right of the applicant to complete construction in accordance with County and municipal regulations at the time of the first approval shall be extended beyond the five-year period, for sections beyond the initial section, for an additional term of three years from the date of final approval of each section.
 - (d) Failure of the applicant to comply with the schedule for submission of final plans for the various sections shall subject any such section to all changes in land use ordinances or other applicable municipal ordinances enacted after the date of filing of the preliminary plan.
 - (e) Where improvements, as listed in MPC § 509(a),¹⁶ may not be possible to install as a condition precedent to final approval of plats, the completion of such improvements shall be a condition precedent to the erection of buildings on lands included in the approved plat, as per MPC § 503(4).¹⁷
- F. Completion of improvements or guarantee thereof prerequisite to final plat approval. No plat shall be finally approved for recording until all required improvements have been constructed or until financial security has been deposited to guarantee the construction of improvements.
 - (1) Construction of improvements prior to final approval and recording of the plan. If the applicant chooses to construct improvements prior to final approval and recording of the plat, the applicant may proceed to do so when all of the following requirements have been met:
 - (a) All other components of the application for final approval have been approved by the Department.
 - (b) All necessary permits and approvals from other agencies have been obtained.
 - (c) Construction drawings for all improvements have been approved by the municipal engineer and municipal governing body.

16. Editor's Note: See 53 P.S. § 10509(a).

17. Editor's Note: See 53 P.S. § 10503(4).

- (d) A development agreement between the applicant and municipality, which is in accordance with applicable provisions of the MPC and acceptable to the municipal solicitor, has been executed, which specifies procedures and responsibilities for construction, inspection and approval of all improvements.
- (2) Approval of final plat following completion of improvements.
 - (a) Following completion of all improvements in accordance with the specifications and plans, the applicant or municipality shall submit to the Department a statement signed by the municipal governing body that all improvements have been completed and approved by the municipality and that all other matters included in the development agreement have been concluded in a manner acceptable to the municipality.
 - (b) Thereafter, the Department shall approve the final plat for recording, and the Director shall sign the notation of approval on the plat.
- (3) Deposit of financial security to guarantee construction of improvements. If improvements are required and the applicant proposes to construct them after final approval and recording of the plan, financial security shall be deposited with the municipality in an amount sufficient to cover the costs of all public improvements and common amenities, including, but not limited to, roads, stormwater management facilities, recreation facilities, open space improvements and required buffer or screen plantings as listed in MPC § 509(a).¹⁸
 - (a) The amount and form of the financial security shall be as specified in Section 509 of the MPC.¹⁹
 - (b) When requested by the applicant, in order to facilitate financing and provided that all other requirements for final approval have been met, the Department shall furnish the applicant with a letter indicating approval of the final plat contingent upon the applicant obtaining a satisfactory financial security. The letter of contingent approval shall expire within 90 days unless an extension is granted by the Department.
 - (c) A copy of an executed development agreement, in a form approved by the municipal solicitor and consistent with the MPC, shall be submitted to the Department, which specifies all agreements between the applicant and the municipality for the conduct of development activities, construction of improvements, inspection by the municipal engineer, establishment and payment of inspection fees, release of financial security upon satisfactory completion of improvements, and any other matters of concern to the municipality.
 - (d) If water mains or other utilities are to be installed under the jurisdiction of a public utility or municipal authority distinct from the municipality, financial security shall be posted to assure proper completion and maintenance thereof in accordance with the regulations of the public utility and shall not be included within the financial security otherwise required.
 - (e) The applicant shall not be required to provide financial security of the costs of any improvements for which financial security is required by and provided to the Department of Transportation in connection with the issuance of a highway occupancy permit.

18. Editor's Note: See 53 P.S. § 10509(a).

19. Editor's Note: See 53 P.S. § 10509.

- G. Deposit of financial security to guarantee integrity and functioning of improvements. If the municipality intends to accept dedication of any improvements after their completion, the developer shall post financial security, if requested by the municipality, to guarantee the structural integrity and proper functioning of the improvements for a period of 18 months from the date of acceptance by the municipality.
- (1) Acceptable security. The financial security shall be of the same type as required by the MPC to guarantee the construction of improvements.
 - (2) Amount of security. The financial security shall not exceed 15% of the actual cost of installation.
- H. Changes encountered during construction of an approved subdivision or land development. If, during construction of an approved subdivision or land development, field changes are requested by the developer, the Department shall determine whether the changes are substantive or not, in accordance with the following:
- (1) Substantive changes requiring resubmission and approval of a final plan. The following changes shall be deemed substantive and shall require resubmission and approval of a final application in accordance with the requirements of §§ 780-303D and 780-403 of this chapter:
 - (a) Any change that modifies or violates a condition attached to the original final approval.
 - (b) Any increase or decrease in the total gross floor area of the approved principal building or buildings that exceeds 5% or any increase in the total number of approved lots or dwelling units.
 - (c) Any change in the ingress, egress or interior traffic circulation or any change in the number or layout of parking spaces involving more than five spaces.
 - (d) Any change that requires a zoning variance or a modification to any requirement of this chapter.
 - (e) Any change in the location of a principal building or buildings resulting in a reduction of the distance between the building(s) and a property line of more than five feet or more than 10% of the approved distance, whichever is less.
 - (f) Any change that substantially increases the traffic impact of the proposed development.
 - (2) Changes which are not substantive but require filing of revised plans with the Department. The following changes shall not be considered substantive and shall not require resubmission and approval of a final application; however, the applicant shall file revised plans with the Department, and the Department shall issue a letter acknowledging that the changes are not substantive.
 - (a) Any increase in the total gross floor area of the approved principal building or buildings that is 5% or less.
 - (b) Any change in the location of a principal building or buildings resulting in a reduction of the distance between the building(s) and a property line of less than five feet or less than 10% of the approved distance, whichever is less.
 - (c) Any increase in the number of parking spaces of five or fewer spaces.

- (d) Any decrease in parking spaces, provided that the decrease maintains compliance with § 780-520 of this chapter.
- (e) Any change in the landscaping plan that substitutes one or more of the plant materials shown on the approved plans with plant materials of a similar type and character.
- (f) Any change mandated by other agency permits.

§ 780-304. Abbreviated procedures for minor plans and plat adjustments.

- A. Application. This section establishes a procedure that combines preliminary and final applications for minor subdivisions and land developments and a simple sign-off process for plat adjustments. The option is available for review of minor plans and plat adjustments in municipalities which have their own regulations if those regulations authorize a one-step approval procedure, as well as for approval of plans in municipalities which do not have their own regulations.
- B. Minor subdivisions and land developments. The Department will review applications for final approval of minor subdivisions and minor land developments without having first reviewed an application for preliminary approval. A complete application for final review of a minor subdivision or land development shall be submitted in accordance with the procedure specified in § 780-302D(1) or (2) or 780-303D(1), except that a fee shall be required.
 - (1) For plans in municipalities that have their own ordinances, the Department will complete its review within 30 days of the date that a complete application is forwarded.
 - (a) If there are no suggested revisions or other comments, the Department will notify the municipal official who transmitted the application either by phone or in writing.
 - (b) If there are suggested revisions or conditions or a recommendation that the application be denied, the review shall be in writing in accordance with the procedure specified in § 780-302C.
 - (2) For plans in municipalities that do not have their own ordinances, the Department will review and approve or disapprove an application in accordance with the procedures specified in § 780-303D.
 - (3) Following completion of the review or review and approval, the Department will accept the final plan prepared for recording, with all required signatures.
 - (a) The Department will review the signed final plan for compliance with requirements of the Department of Real Estate.
 - (b) If the final plan is correctly prepared, the Director will sign the notation that the plan has been reviewed or approved by the Department.
- C. Review of plat adjustments. Subdivisions which are classified as plat adjustments in Article II may be submitted as prepared for recording, with all required signatures.
 - (1) Plat adjustment plans will be reviewed for compliance with requirements of the Department of Real Estate.
 - (2) If the final plan is correctly prepared, the Director will sign the notation that the plan has been reviewed or approved by the Department.

§ 780-305. Recording requirements.

- A. Application. The requirements of this section apply to all plans that are to be recorded in Allegheny County, including plans located in municipalities which have their own regulations, as well as in municipalities where the County approves plans.
- B. Drafting standards. All final plans for recording shall be prepared in accordance with administrative regulations issued by the Department of Real Estate to ensure that the recorded plans will be accurate, complete and legible. These regulations may be changed from time to time, based upon the requirements of the systems or technology used to record the plans. The current requirements related to the drafting of plans are included in Appendix 1.²⁰
- C. Required certifications and notations. Certifications, notations and approvals required on final plans for recording are included in Appendix 3.²¹

§ 780-306. Digital submission requirements.

For major subdivisions and land developments, the plans required by §§ 780-402 and 780-403 shall be provided in both hard copy and as a digital file, which shall be prepared to the following standards:

- A. Data integrity. All data submitted shall be in compliance with the "Manual of Practice for Professional Land Surveyors in the Commonwealth of Pennsylvania."
- B. Data layering. Digital submissions shall have all layers clearly and separately represented. Included with all digital submissions, a document shall be included outlining the following:
 - (1) A list of all layers used, with a description of what those layers represent.
 - (2) A list of all point files and break lines, with a description of any abbreviations.
 - (3) Coordinate system. All drawings must be in PA State Plane projection, PA South Zone, NAD83 datum. Units shall be in U.S. feet.
 - (4) Format. All drawings must be submitted in AutoCAD drawing (.dwg) or AutoCAD interchange (.dxf) format on CD-ROM.
- C. Coordinate system. All drawings must be in PA State Plane projection, PA South Zone, NAD83 datum. Units shall be in U.S. feet.

20. Editor's Note: Appendix 1 is included at the end of this chapter.

21. Editor's Note: Appendix 3 is included at the end of this chapter.

ARTICLE IV
Application Information

§ 780-401. Sketch plan application guidelines.

Sketch plan information. While no formal application is required for a preapplication meeting, it is suggested that the applicant provide as much of the following information for the property as is readily available from existing resources, for example:

- A. A brief narrative describing the proposed project.
- B. A property survey and an informal sketch illustrating the concept for the proposed project; if the conceptual plan has been prepared by a professional consultant, the name and address of the firm.
- C. Names and addresses of landowner, developer and applicant.
- D. Location map, at scale, that clearly identifies location of the property.
- E. Name of the municipality (or municipalities) where the project is located.
- F. Existing zoning of subject property and zoning of adjacent property.
- G. Approximate location and type of any existing utilities and easements.
- H. Statement explaining the proposed method of water supply and sewage disposal.
- I. Significant natural and man-made features (e.g., floodplains, watercourses, tree masses, undermined areas, existing structures, etc.) on the site as shown on mapping available from the National Flood Insurance Administration, United States Geological Survey (USGS), U.S. Bureau of Mines, Allegheny County Soils Surveys, Allegheny County Department of Economic Development Geographic Information System (GIS) and resources identified in the County Comprehensive Plan ("Allegheny Places").
- J. Completed worksheet from Appendix 9, Calculation of Maximum Acreage Available for Development.²²

§ 780-402. Preliminary plan submittal requirements.

Preliminary plan application contents. All applications submitted for preliminary approval shall show or be accompanied by the information listed below. See also § 780-306 for major subdivisions and land developments.

- A. Project description.
 - (1) A brief narrative describing the proposed project.
 - (2) Title block containing the name of the proposed project, name of the municipality, the project number assigned by the firm that prepared the plans, the plan date and dates of all plan revisions.
 - (3) Name, address and phone number of the owner of record, developer and applicant.
 - (4) Name, address and phone number of the firm that prepared the plans, and name, signature, registration number and seal of engineer, surveyor, landscape architect and/or architect involved

22. Editor's Note: Appendix 9 is included at the end of this chapter.

in the preparation of the plans.

- (5) North arrow and graphic scale.
- (6) Site location map, taken from a USGS quadrangle map. The location map shall be at scale and of a size sufficient to show clearly where the project is. Include quadrangle sheet name.
- (7) Entire tract boundary with bearings and distances as shown by deed, and the total acreage of the entire tract. If the proposed project is located in two or more municipalities, show municipal boundary lines on the plan.
- (8) Existing platting of land adjacent to the site, and the names of any adjacent landowners not in a previously recorded plan.
- (9) Schedule of zoning district requirements, including area and bulk regulations, density, coverage and building and yard requirements. Show the zoning of all adjacent land.
- (10) List any variances or other zoning approvals which are being requested or which have been granted by the municipality.
- (11) List, with supporting evidence for the request, any modifications or waivers of subdivision and land development regulations that are requested.
- (12) Site analysis as specified in § 780-501B.

B. Existing conditions.

- (1) Contours, shown at two-foot vertical intervals, except where slopes exceed 40%, at ten-foot intervals. Show existing contours with dashed lines and number clearly. State location and elevation of datum to which contour elevations refer. Datum used shall be a known, established benchmark. Contours plotted from USGS quadrangle maps shall not be acceptable.
- (2) Steep slopes, with categories of slope delineated as follows:
 - (a) Fifteen percent to 25%.
 - (b) Twenty-five percent to 40%.
 - (c) Greater than 40%.
- (3) Soils. Identify soil series as shown in the Soil Survey of Allegheny County, including landslide-prone soils and hydric soils. Plot soil limit lines on the base map.
- (4) Regulated waters of the commonwealth and required setbacks as defined in Title 25, Environmental Protection, Chapter 105, Dam Safety and Waterway Management.²³ If any part of the site lies within a floodplain, as indicated on a certified FEMA map, plot the floodway and one-hundred-year floodplain boundary on the base map and reference the community panel number, map name, date and map panel numbers.
- (5) General vegetative cover. Provide a brief description of the general vegetative cover of the site (meadows, wetlands, wooded, etc.). Show approximate location of any woodlands or groves, as defined in § 780-202, definition of "woodlands." Show the number, species, size and approximate location of all trees with a DBH of 24 inches and over proposed to be disturbed.

23. Editor's Note: See 25 Pa. Code Chapter 105.

- (6) Significant natural features, including plant and wildlife habitat areas for rare or endangered species, wetlands, biodiversity area or any other natural feature identified in the Allegheny County Natural Heritage Inventory and Allegheny Places.
 - (7) Potentially hazardous features, including quarry sites, surface and subsurface mines, undermined areas, underground fires, solid waste disposal sites, contaminated areas, oil and gas wells and transmission lines, and landslide-prone areas. Show the approximate location and cite source information.
 - (8) Significant cultural features, including cemeteries, burial sites, archaeological sites, historic buildings, structures, plaques, markers or monuments. Show approximate location and cite source information.
 - (9) Existing structures. Show the approximate location and type. If an existing structure is proposed to be demolished, show clearly on the plans.
 - (10) Existing streets, roads, alleys, driveways or other means of access located on or within 100 feet of the site. Include the name, jurisdiction of ownership, width and location of right-of-way and existing grades.
 - (11) Existing utilities, including any related easements or rights-of-way. Show the approximate location. Identify purpose and ownership.
 - (12) Location, ownership and type of any other easements or rights-of-way, including railroads, trails, gas or oil wells and gas or oil transmission lines, etc.
 - (13) Airport noise contours and airport hazard areas. Show the approximate location and cite source information.
 - (14) Public water supply wells; wellhead protection areas as per § 780-202, definition of "wellhead protection area"; riverine raw water intakes within 2,000 feet of the proposed development.
 - (15) Areas on the site or within 1,000 feet of the site boundaries identified in the Allegheny County Greenway Network, if any.
 - (16) Areas on the site or within 1,000 feet of the site boundaries identified in the Allegheny Land Trust Greenprint, if any.
 - (17) Any areas on the site subject to land trust or agricultural conservation easements.
- C. Proposed conditions. For all proposed subdivisions and land developments, the following information shall be provided:
- (1) Tabulation of site data, including total acreage of land to be subdivided, in both acres and square feet, number of lots, proposed density, number of dwelling units and acreage of any proposed open space or other public/common areas. For nonresidential developments show the total square footage of all proposed buildings, percent lot coverage, the number of parking spaces required and the number provided.
 - (2) All required yards and building setback lines. Show any required buffer yards.
 - (3) Proposed streets. Show the location, width of cartway and right-of-way. Provide center-line profiles for all proposed streets or any existing streets to be improved.

- (4) Proposed lot layout. Show lot widths and lot lines in scaled dimensions and lot areas in square feet. Show proposed lot numbers.
- (5) For nonresidential and multifamily developments, show proposed buildings, parking areas, access drives, driveways and any other significant proposed feature.
- (6) Proposed utilities and related easements. Show points of connection to existing utilities.
- (7) Proposed pedestrian and bicycle circulation routes, including any easements or rights-of-way.
- (8) Proposed public or semipublic areas, reserved areas, open space areas and any related conditions or restrictions.
- (9) Proposed grading, with existing and proposed contours at a two-foot vertical interval. Existing contours shall be plotted with dashed lines, and proposed contours with solid lines. Proposed contours shall tie back into existing contours. Number contours clearly. The grading plan shall include the following information:
 - (a) Approximate finished floor elevations of proposed buildings.
 - (b) Approximate grades on all accessible parking spaces and related access routes.
 - (c) Approximate quantity of total excavation in cubic yards. Show the approximate location of cut and fill areas and limit of disturbance. Indicate whether or not the earthwork is expected to balance on site.
- (10) Stormwater management report, which shall include the following information:
 - (a) A general description of the proposed development, including the name of the watershed in which the proposed development is located and the (sub)basin release rate percentage.
 - (b) Map taken from the USGS quadrangle sheet, showing watershed draining to the project site. The map shall be at scale. Show the name of quadrangle sheet. Show the area of watershed in acres. Highlight any potential DEP regulated encroachments.
 - (c) Method and standards used in the design of stormwater management facilities (i.e., Rational, TR-55, other).
 - (d) Preliminary calculations, including pre- and post-development runoff and approximate basin storage volumes.
 - (e) Approximate location of any proposed permanent stormwater management facilities, such as detention basins, storage tanks, sumps, outlet structures, inlets, manholes, piping, permanent swales, etc.
 - (f) Soils information from the U.S. Department of Agriculture, Natural Resources Conservation Service, National Cooperative Soil Survey.
- (11) Preliminary soil erosion and sedimentation pollution control plan.
- (12) Landscape plan, including the names, sizes, quantities and approximate location of all proposed plant materials.
- (13) If site lighting or streetlighting is proposed, a photometric plan showing all of the following information:

- (a) All structures, parking spaces, building entrances, traffic areas, vegetation and adjacent uses.
 - (b) Layout of proposed fixtures by location, orientation, aiming direction, mounting height and type.
 - (c) A ten-foot by ten-foot illumination grid of maintained horizontal footcandles overlaid on the site plan plotted to 0.0 footcandle demonstrating compliance with requirements of this chapter.
 - (d) Proposed equipment, including fixture catalog cuts, photometrics, glare-reduction devices, lamps, on-off control devices, mounting heights, pole foundation details and mounting methods.
 - (e) Placement of fixtures in landscaping.
 - (f) Visual impact plan, including plan views showing pole locations and adjacent residences, elevations with initial vertical illuminance at site boundary and on adjacent windowed facades, frequency of use of the site and narrative describing measures to minimize off-site disturbance.
- (14) Preliminary record plat, prepared for recording to the standards required by the Allegheny County Department of Real Estate.

D. Other required information.

- (1) Traffic impact study: as per § 780-519F, where the proposed development will generate 100 or more peak-hour vehicle trips per day or any residential development which proposes 100 or more dwelling units.
- (2) Geotechnical report. Where the site proposed for development contains landslide-prone soils, a soils engineer shall conduct studies to determine the exact location of the landslide-prone areas. Such areas shall be clearly identified on the base map.
- (3) Subsidence risk assessment. Where evidence exists that subsurface mining has occurred 100 feet or less below the surface of the site proposed for development, a subsidence risk assessment, prepared by a qualified professional geotechnical engineer, shall be provided.
- (4) Soil contamination assessment. Where the proposed subdivision or land development site contains any hazardous substances, then a geotechnical report and a remedial investigation/feasibility study shall be provided.
- (5) Sewage facilities planning module. A copy of the completed "Application for Sewage Facilities Planning Module," as filed with the Pennsylvania Department of Environmental Protection or the Allegheny County Health Department, or a letter from the appropriate Department stating that a sewage facilities planning module is not required.
- (6) Existing restrictions. Where the land proposed to be developed or subdivided contains any existing covenants, grants of easement, private deed restrictions, or other restrictions, a copy of the recorded document, or, in the absence of a recorded document, then a letter from the holder of the restriction stating any conditions on the use of the land.
- (7) Schedule of phased developments. If the applicant proposes to construct the development in phases, the applicant must submit a schedule of the projected dates that the final application for

each phase will be filed.

- (8) Where streetlighting or site lighting is proposed, a photometric plan shall be submitted that contains the applicable information required by § 780-402C(13) to determine compliance with § 780-522 of this chapter.
- (9) Requirement to inform. An applicant for approval of a major subdivision or land development shall inform the providers of public services and facilities of the proposed development, including sufficient information about the development to enable the service provider to determine whether sufficient capacity, facilities, and/or equipment are available to serve the new development.
 - (a) Service providers who must be informed may vary, based on the nature of the proposed development and the community in which it is located, but will normally include police, fire and emergency services and school districts. (Requirements concerning public transportation service and approval of street names by the Postmaster are included in § 780-303C.)
 - (b) Documentation that the required information was transmitted to appropriate service providers shall be included with an application for preliminary approval. Responses from service providers indicating their ability to provide service to the proposed development may be required prior to final approval.
- (10) Stormwater review. Where a stormwater management plan is required, the applicant shall submit proof of submittal to the Allegheny County Health Department. A copy of the transmittal or cover letter that accompanied the stormwater management plan shall be provided with the preliminary application as proof of submittal to ACHD.

§ 780-403. Final plan application requirements.

Final plan application content. All applications submitted for final approval shall include, in accurate and final form, all of the information required for preliminary plan submittals; however, supporting maps and information need not be resubmitted if there have been no changes to that information. Applications for final approval shall include the following:

- A. A copy of the approved preliminary plan.
- B. Final plat, in accurate and final form for recording. See also § 780-306 for major subdivisions and land developments. The final plat shall include the following:
 - (1) Title block, placed in the lower right-hand corner and containing the following information:
 - (a) The name and location of the subdivision or land development, the plan date and the date of any revisions.
 - (b) The name and plan book volume and page numbers of the previously recorded plan, if any.
 - (c) Name, address and phone number of the owner of record and the developer.
 - (d) Name, address and phone number of the firm that prepared the plans, and the name, seal and registration number of the surveyor who prepared the plan.
 - (e) Sheet number, North arrow and graphic scale.

- (2) Tract boundaries, right-of-way lines of streets, easements and other right-of-way lines with accurate distances to hundredths of a foot and bearings to 1/4 of a minute. Tract boundaries shall be determined by field survey only and shall be balanced and closed. Surveys shall be prepared in accordance with the standards contained in Appendix 4.²⁴
 - (3) Complete curve data for all curves included in the final plat, including radius, arc length, chord bearing and chord distance.
 - (4) Location, type and size of all monuments and lot line markers. State whether found, set or to be set.
 - (5) Approved street names and street right-of-way widths.
 - (6) Lot numbers, lot dimensions, lot areas in square feet and building setback lines.
 - (7) Tabulation of area data in acres and square feet, including lots, parcels, units, areas dedicated for rights-of-way, etc., and total plan area.
 - (8) Lot and block or Tax Map parcel numbers.
 - (9) Easements and rights-of-way for all public and private improvements, including widths, purposes and limitations, if any.
 - (10) Accurate dimensions, acreage and purpose of any property to be reserved as public or common open space.
 - (11) Indication of platting of adjacent property and the names of the adjacent property owners.
 - (12) Site location map, prepared in accordance with § 780-402A(6) of this chapter.
 - (13) All required municipal certifications, which shall include the municipal engineer.
 - (14) Certification of plat preparation and accuracy by a registered surveyor.
 - (15) Certification of the dedication of streets and other property.
 - (16) All other certifications, dedications and acknowledgments, as required by Appendix 3²⁵ of this chapter and the Allegheny County Department of Real Estate.
 - (17) Plats which require access to a road under the jurisdiction of the Pennsylvania Department of Transportation shall contain a notice that, before driveway access is permitted, a highway occupancy permit is required pursuant to Section 420 of the Act of June 1, 1945, known as the "State Highway Law."²⁶
 - (18) Notation on the plan of any modifications or waivers granted to the provisions of this chapter.
- C. Land development plans. In addition to the above final requirements, land development plans shall include the following information:
- (1) Final site plan, including building locations, parking areas, roads and access drives, landscaping and buffer yards in accordance with the applicable standards and regulations of Article V.

24. Editor's Note: Appendix 4 is included at the end of this chapter.

25. Editor's Note: Appendix 3 is included at the end of this chapter.

26. Editor's Note: See 36 P.S. § 670-101 et seq. and specifically 36 P.S. § 670-420.

- (2) Final grading plan, as per § 780-503 of this chapter. The final grading plan shall include all final contours, grades, floor elevations, permanent conservation measures, limit of disturbance line, typical keyway and/or benching details, and earthwork quantities in cubic yards.
 - (3) Final stormwater management plan, as per § 780-515, including all final calculations.
 - (4) Final soil erosion and sedimentation pollution control plan, as submitted to the Allegheny County Conservation District (ACCD), and evidence that the ACCD has issued a finding of adequacy.
 - (5) Dimensioned site layout plan.
 - (6) Final photometric plan, as per § 780-402C(13).
- D. Construction plans for public and private improvements, prepared by a registered professional, drawn at a scale no smaller than one inch equals 50 feet on sheets measuring 24 inches by 36 inches. The construction plans shall show the following:
- (1) Conformity with the design standards specified in Article V of this chapter.
 - (2) Plan and center-line profile drawings of each street in the plan and extending at least 200 feet beyond the plan. Street profiles shall include complete vertical curve information.
 - (3) At least a typical cross-section of each street in a new development, extending at least 50 feet from the street center line to each side or extending 25 feet from the right-of-way line to each side, whichever is greater.
 - (4) The location of all existing and proposed sanitary sewers, storm sewers, manholes, catch basins and endwalls within the site, and all necessary extensions thereof beyond the site.
 - (5) By plan, all pipe sizes, distances and directions of flow. Show sanitary sewer wye locations, including a station for each wye as measured from the downstream manhole.
 - (6) By profile, all pipe sizes, materials, distances and grades, and top and invert elevations of all manholes, catch basins and endwalls. Show existing and proposed ground.
 - (7) All construction details for stormwater detention facilities, including any intake control structures, discharge control structures, underground storage tanks, sumps and stormwater detention basins.
 - (8) The locations of all other existing and proposed utilities, including gas, water, fire hydrants, electric, telephone and cable TV.
 - (9) All easements and rights-of-way for public improvements.
- E. Permits and approvals. The applicant shall submit certified copies of all permits and approvals required by applicable federal and state laws and County codes and regulations, including, without limitation, the following:
- (1) Allegheny County Conservation District adequacies and permits.
 - (2) Federal Aviation Administration and PennDOT Bureau of Aviation approvals where required.
 - (3) Pennsylvania Department of Environmental Protection sewage facilities permits, general permit, wetland encroachment permits, stream encroachment/obstruction permits, etc.

- (4) County of Allegheny and Commonwealth of Pennsylvania permits for any proposed roads or driveways.
- (5) Water supply certification as required by § 780-513B(3).
- (6) Letters of intent to provide service from utilities companies per § 780-513B(3) and § 780-518B.
- (7) A copy of comments received, if any, from Allegheny County Health Department on the stormwater management plan submitted in accordance with § 780-402D(10).

ARTICLE V
Design Standards

§ 780-501. Contents; site analysis; alternative plan; regulations of other jurisdictions.

- A. Contents of Article V. This Article V includes specific standards for the design of subdivisions and land developments and requirements for improvements. Minimum standards and requirements are specified for each element of design or improvement. General goals or statements of desired outcomes are listed in § 780-502. The Department will consider alternatives to specific standards and requirements specified in § 780-503 and following sections if the applicant demonstrates that an alternative will achieve the desired outcome to a higher degree or will produce more desirable results than application of the specified standard.
- B. Site analysis. The design of a subdivision or land development shall be based upon an analysis of existing conditions of the site, which includes consideration of the site's natural and man-made features and of the opportunities and constraints for development that are associated with these features. The site analysis shall also consider the relationship of the site to surrounding developed and undeveloped areas and to applicable municipal, County and regional plans. The required project narrative should summarize how the analysis of existing conditions has influenced the design of the subdivision or land development.
- C. Alternative development plan. Before considering requests for waivers or modifications of standards or requirements contained in this Article V that will reduce the attainment of the goals listed in § 780-502, the Department may require the applicant to prepare alternative development plans which more nearly meet the requirements of this chapter. Such alternatives may be required to include the clustering of development on portions of the site which are not constrained by the environmental protection provisions of this chapter and may include a reduction in the otherwise allowable density or intensity of development on the total site. The original plan shall be approved only if the applicant demonstrates to the satisfaction of the Department that an alternative plan is not practical or feasible.
- D. Regulations of other jurisdictions. It shall be the responsibility of the applicant for approval of a subdivision or land development to obtain all required permits and approvals from other jurisdictions or agencies. No application shall be finally approved by the Department or recorded until all required permits and approvals have been obtained, unless the plan for recording includes a notation that specified permits will be obtained prior to issuance of construction permits.

§ 780-502. General goals for design and development.

Subdivisions and land developments shall be designed to achieve the general goals or outcomes that are listed in this section.

- A. Allegheny County Comprehensive Plan. All development should be consistent with the land use patterns promoted in Allegheny Places, the Allegheny County Comprehensive Plan. Allegheny Places encourages efficient development density close to existing infrastructure and community resources to minimize the need for the development of new infrastructure. New subdivisions and land developments shall be interconnected with existing developments to the greatest extent possible and include multimodal transportation options to reduce vehicle dependency. The purpose of requiring interconnectivity and street connections is to achieve a street network that provides multiple routes to and from destinations. Such a network is key to supporting walking and bicycling as convenient, safe, and healthy forms of transportation.

- B. Minimize damage to the environment. All subdivisions and land developments shall be designed to minimize environmental damage to the maximum extent possible, by carefully fitting the subdivision or development to the existing conditions and natural features of the site.
- (1) Minimize grading. Roads, building sites and lots should be laid out in a manner that will minimize disturbance of the land. Roads should generally follow existing contours, where doing so will minimize cuts and fills. Naturally level areas should in general be utilized for building sites. Clustering of development on less steep areas of the site is strongly encouraged, as an alternative to mass grading.
 - (2) Protect steep slopes. Wooded hillsides are important environmental and aesthetic resources of Allegheny County. Development should be located to avoid disturbance of steeply sloped areas and to preserve the visual character of wooded hillsides.
 - (3) Protect watercourses and wetlands. Watercourses are the County's natural drainageways for the conveyance of surface waters, including runoff and floodwaters. Streams, land bordering streams and wetlands provide habitat for aquatic and terrestrial plants and animals and may function as wildlife corridors. The County's larger streams and rivers are primary elements of the visual character of the County and are also important resources for recreation and commerce. Development should be designed to preserve and protect the County's watercourses and wetlands so that they can continue to serve all of these functions.
 - (4) Preserve woodlands and mature trees. New developments should be designed to preserve and protect existing woodlands, as excessive cutting of trees and clearance of woodlands in conjunction with subdivision and land development causes soil erosion, increased runoff, loss of habitat, and diminution of one of the County's most significant visual resources: the wooded hillsides that are so prominent throughout the area. Except for regulated commercial timbering operations, the cutting of mature trees and clearance of woodland shall commence only after final approval of a plan for subdivision or land development, and then only to the extent required for the construction of roads, utilities and buildings.
 - (5) Protect other identified natural resources. Special care should be taken in the design and construction of subdivisions and land developments to protect habitats in which rare or endangered plants or animals are found and other ecologically important sites.
 - (6) Protect historic, architectural and archaeological resources. Sites containing structures of historic or architectural significance should be designed to preserve, enhance or reuse such structures, in accordance with any applicable state regulations.
 - (7) Protect the quality of the County's air and water. All land development shall comply fully with federal, state and County laws and regulations concerning air and water pollution.
- C. Avoid hazardous development. Where hazardous or potentially hazardous features are present on proposed development sites, the design of subdivisions and land developments shall consider such features. Appropriate precautions shall be taken to ensure that development will be safe and that the public health and welfare will be protected. Development shall not be approved unless safety is ensured.
- (1) Landslide-prone areas. In areas where soils or underlying geology may be unstable, geotechnical investigation shall be required to ensure the safety of any proposed disturbance.
 - (2) Undermined areas. In areas where mining has occurred in the past, subsidence risk assessments

may be required to establish that proposed development will be safe.

- (3) Flood-prone areas. New construction in the undeveloped one-hundred-year floodplain should be avoided. New construction in other undeveloped areas subject to frequent flooding should also be avoided. In areas where the floodplain has been developed in the past and new construction is unavoidable, such development shall be in accordance with all applicable state and federal regulations.
 - (4) Contaminated sites. In order to protect the public health, no subdivision or development of land in areas which may have been contaminated by former industrial or other uses shall be approved unless the site has been made safe for development. Development of contaminated sites shall be limited to uses which will not pose health risks for site occupants.
 - (5) Areas exposed to aircraft noise or hazards. Subdivisions and land developments in areas of the County where airport-related noise is high or where aircraft landings and takeoffs can be endangered by vertical obstructions or other hazards shall ensure that development does not reduce the ability of the airport to function safely and efficiently. Conversely, the safety of development and the health and welfare of occupants should not be compromised because of proximity to airports.
- D. The general layout of subdivisions and land development should respect the natural resources of the site and the character of the surrounding area and be suitable for the intended uses. The design of blocks and lots shall comply with the zoning requirements of the municipality and should provide suitable sites for buildings. The design of subdivisions and land development should consider the topography and other natural features of the site, requirements for safe and convenient pedestrian and vehicular circulation and the character of surrounding development. Subdivisions and land developments should be compatible with municipal, County and regional comprehensive plans and components thereof.
- E. Land development shall include landscaping which is designed to improve community appearance, to contribute to the environmental quality and livability of new development areas and to mitigate the negative impacts of development upon other areas of the community. Uses and structures should be sited to minimize adverse impacts from or upon adjoining uses. Landscaping and buffer yards should be designed to reduce unavoidable impacts and to augment the natural features of the site.
- F. Provide a full range of improvements in subdivisions and land developments as required to ensure the public health, safety and welfare and the creation of desirable communities for living, working and recreation.
- (1) Water. A safe and sufficient supply of potable water shall be provided for new subdivisions and land developments, in accordance with applicable regulations of the commonwealth and County. New development should not degrade the quality of potable water supplies.
 - (2) Sanitary sewage facilities shall be provided for new subdivisions and land developments, in accordance with applicable regulations of the commonwealth and County.
 - (3) Stormwater management. Every subdivision and land development shall manage stormwater flows in accordance with the Pennsylvania Storm Water Management Act²⁷ and PADEP's implementing regulations. All development located in watersheds for which watershed stormwater management plans have adopted shall comply with all requirements of the

27. Editor's Note: See 32 P.S. § 680.1 et seq.

watershed plan.

- (4) Other essential public utilities. New subdivisions and land developments shall be served by other essential public utilities, including electricity, natural gas and telephone. New subdivisions and land developments may also be served by alternative energy sources, such as solar or wind, in accordance with any applicable state, federal and local regulations.
- (5) Public and community services. All new development should have access to a full range of community services and facilities, such as public safety and emergency services and recreation facilities, schools and libraries.
- (6) Transportation facilities. New subdivisions and land developments should include a range of transportation facilities, for access to all lots, buildings, and open space areas intended for use by people. Transportation facilities developed within new subdivisions and land developments should be designed as parts of the larger system of transportation facilities which serve the community. Transportation facilities may include streets, public transportation, sidewalks, bikeways and multipurpose trails for nonmotorized transportation.

§ 780-503. Grading.

- A. Purpose. The purpose of these standards is to ensure public health, safety and welfare and to protect property by preventing rock and soil slippage, loss and degradation of natural drainageways, increased soil erosion and sedimentation and other soil- and water-management-related problems.
- B. Application. If the municipality in which a proposed subdivision or land development is located has enacted a grading ordinance, the municipal standards shall apply. If a more stringent related standard is contained in another section of this chapter (e.g., § 780-504, 780-505 or 780-509) than in the municipal grading ordinance, the stricter standard shall govern. If the municipality has no applicable regulations, the following general standards shall apply.
- C. General standards for grading.
 - (1) No grading, stripping of topsoil, excavation or any other earth disturbance activity which changes the existing contours of the land, and no clearing, grubbing or any other activity which results in the removal of existing vegetation (other than the removal of dead or diseased plant material), shall be permitted except in conjunction with a finally approved land development, subdivision or phased master plan.
 - (2) Grading shall be limited to the minimum area necessary to provide for buildings, roads, parking areas, utilities and other facilities shown on the approved land development plan.
 - (3) Grading in areas susceptible to landslides, subsidence, or flooding, on steep slopes, or in wetlands shall comply with the additional provisions of §§ 780-504, 780-505 and 780-509 hereunder.
 - (4) A soil erosion and sedimentation pollution control plan shall be prepared in accordance with the provisions of Title 25, Environmental Protection, Chapter 102, Erosion and Sediment Control,²⁸ and where required, a finding of adequacy shall be issued by the Allegheny County Conservation District (ACCD) prior to the commencement of any grading or other regulated earth disturbance activity. Where submission of the plan to the ACCD is not required by state

28. Editor's Note: See 25 Pa. Code Chapter 102.

or federal regulations (generally for sites less than five acres), the Department may require that the plan be submitted to the ACCD for review.

- (5) Where required by the National Pollution Discharge Elimination System (NPDES) and/or state regulations, a permit shall be obtained prior to commencement of grading:
 - (a) For development sites equal to or greater than one acre in size, a DEP general permit PAG-2 or an individual NPDES permit for stormwater discharges pursuant to current regulations under 25 Pa. Code Chapter 102 is required. Issuance of the PAG-2 permit has been delegated to the ACCD. The processing of individual NPDES permits has been delegated to the ACCD. Permits are issued by the DEP Southwest Regional Office.
- (6) The applicant shall be responsible for protecting adjacent and downstream properties from any damage which occurs as a result of earth disturbance on the development site. Such protection shall include cleaning up and restoring to their original condition any adjacent and downstream properties adversely affected by silt, debris, flooding, or other damage resulting from the earth disturbance activity.
- (7) The top and bottom edges of cut or fill slopes shall be kept back from property or right-of-way lines three feet plus $\frac{1}{5}$ the height of the cut or fill, which total distance need not exceed 10 feet.
- (8) Topsoil stripped from the site in preparation for earthmoving activities shall be stockpiled and replaced on the site over all regraded, nondeveloped areas, at a minimum depth of six inches.
- (9) Fill areas shall be prepared by removing organic material such as vegetation and rubbish and any other material determined by the engineer to prevent proper compaction and stability.
- (10) Proposed grading shall be accomplished so that post-development stormwater runoff flows cause no harm to abutting properties.
- (11) Maximum steepness of graded slopes shall be no greater than two horizontal to one vertical except under the following conditions:
 - (a) Where the height of a proposed slope will not exceed 12 feet, then a maximum slope steepness of one to one may be allowed where soil conditions permit and doing so will help to preserve existing vegetation or other significant natural features. The cut or fill shall be located so that a line having a slope of two horizontal to one vertical and passing through any portion of the slope face will be entirely inside the property lines of the proposed development.
 - (b) Where a retaining wall, designed and sealed by a registered professional engineer, is constructed to support the face of the slope.
 - (c) A geotechnical analysis by a registered professional engineer in Pennsylvania with geotechnical training and experience that demonstrates the steep slopes are stable with a slope stability factor of 1.5 for slopes potentially impacting a structure and a slope stability factor of 1.3 for other slopes, unless otherwise approved by the County. These requirements indicate that the soil strength (resisting force) is 50% or 30%, respectively, greater than the shearing (driving force) acting on the slope.
- (12) Excavation adjacent to any building foundation walls, footings or structures shall not extend beyond the angle of repose or natural slope of the soil under the nearest point of same unless the footings, foundations or structures have been sufficiently underpinned or otherwise protected

against settlement.

(13) Reforestation.

- (a) Graded slopes whose height equals or exceeds 40 feet shall be reforested in order to prevent erosion, promote slope stabilization, encourage natural revegetation, and reduce the visual impacts of extensive areas of graded slopes.
- (b) Slopes shall be planted with trees and shrubs. The use of hardy, self-propagating indigenous species is recommended. Invasive plants are prohibited as noted in § 780-512B. Quantities, sizes and condition of the plant material shall be appropriate to the species and the growing conditions. Bare-root trees, whips and seedlings may be permitted with the concurrence of the Department.

§ 780-504. Protection of moderately steep and steep slopes.

Limitations on disturbance. The following standards shall apply to all grading and disturbance of land with slopes of 15% or greater. If any of the delineated steep slope areas include soils or geologic features which indicate possible instability, the additional standards contained in § 780-510A shall apply.

- A. Slopes between 25% and 40%. No more than 30% of slope areas with existing grades between 25% and 40% shall be stripped of vegetation or disturbed through grading. Grading and clearing for roads on these slopes shall be limited to that necessary to accommodate the cartway and shoulders or berms. Wherever possible, roads should follow the contours of the land.
- B. Slopes between 15% and 40% located within Greenprint areas, as defined in Allegheny Places: no development.
- C. Slopes exceeding 40%. No development or disturbance shall be allowed on slopes exceeding 40%. Limited disturbance for utilities may be allowed where no reasonable alternative location exists.

§ 780-505. Protection of watercourses and wetlands.

- A. Purpose. The regulations contained in this section are intended to promote the public health, safety and welfare by ensuring that watercourses and wetlands will be preserved in their natural condition so that they may continue to convey and store water, provide habitat for flora and fauna, and serve as recreational and aesthetic resources.
- B. Setback or open space easement required. No grading, cutting, filling, removal of vegetation, or other disturbance of land shall be permitted within the required setback.
 - (1) The minimum setback for watercourses shall be 50 feet, measured from the top of the channel bank. In addition, land development involving the construction of new buildings shall not be permitted within 100 feet of the top of the bank of the Allegheny, Monongahela, Ohio or Youghiogheny Rivers.
 - (2) The setback for wetlands shall be as follows:
 - (a) Determination of setback area:
 - [1] Wetlands one acre and over: fifty-foot setback depth, times the perimeter of the wetland (measured in lineal feet), equals the minimum setback area.
 - (b) Distribution of the required setback area shall be either:

- [1] At the uniform setback depth from the delineated edge of the wetland; or
 - [2] At a variable setback depth, based on a wetland management plan prepared by a certified professional wetlands biologist. In no case, however, shall the setback be less than 10 feet from the delineated edge of a wetland less than acre in extent or 20 feet from the delineated edge of a wetland one acre or more in extent.
- (3) Minor earth disturbance and construction within the area of the required setback or easement, required for development in other areas of the site, may be allowed in accordance with all regulations of the Department of Environmental Protection and municipal floodplain regulations, where applicable.
 - (4) Construction may also be allowed within the required setback area of rivers to enable the development of uses that require proximity or access to the river, in accordance with applicable federal, DEP and municipal regulations.
 - (5) In larger subdivisions and land developments, the required setback area should be integrated into a system of public or common open space. In smaller subdivisions and land developments, the preservation of these open space areas shall be ensured through recorded easements, deed restrictions or other means acceptable to the Department and to the municipality.
 - (6) Where the required setback or easement would render a site unusable under the municipality's zoning regulations because of the limited size or dimensions of a parcel of land prior to its subdivision, the Department may reduce the depth of the setback to not less than 50 feet along a river and to not less than 20 feet along other watercourses. Any reduction in depth of setback which may be allowed by the Department does not supersede any requirement for a greater setback imposed by federal, state or municipal regulations.
- C. Alteration of drainage. When a proposed subdivision or land development encompasses or adjoins a watercourse or wetland, the design of the proposed development shall not alter site drainage in ways that will reduce the ability of the watercourse or wetland to support the vegetation and animal life that characterized the area before development. Existing wetlands may be used to control stormwater runoff flows from a development site, provided that a certified wetlands biologist participates in the design of the proposed stormwater detention facility or certifies that the proposed facility will not adversely affect the wetland, as defined herein.

§ 780-506. Protection of trees and woodlands.

- A. Woodland preservation. Not more than 50% of the total area of mature woodlands and not more than 75% of the total area of woodlands on a development site shall be removed in conjunction with a subdivision or land development. The remaining woodlands shall be protected as open space. No area of any existing woodland shall be removed prior to the granting of final approval of the proposed subdivision or land development.
- (1) Priority in woodland preservation shall be given to woodlands in one-hundred-year floodplains, wetlands, stream valley corridors, steep slopes and landslide-prone areas.
 - (2) The Department may consider modification of this standard if evidence is presented from a professional arborist, forester, landscape architect or other expert whose qualifications are acceptable to the Department that a lesser area of woodlands should be preserved because of disease, undesirability of species, or other reason affecting the quality and health of the woodland.

- (3) The Department may allow a greater percentage of woodland area to be cleared if new replacement woodlands are provided elsewhere on the site or an approved off-site mitigation area. The minimum area of the replacement woodland shall be at least 125% of the woodland area cleared in excess of the areas allowed in Subsection A above. The replacement woodland shall be prepared, planted and maintained in accordance with a plan prepared by a forester or other qualified professional and approved by the Department.

B. Preservation of large or unique trees.

- (1) All healthy trees with trunks equal to or exceeding 24 inches DBH, or any tree which may be noteworthy because of its species, age, uniqueness, rarity or status as a landmark due to historical or other cultural associations, and which is located within the area of disturbance shall be preserved unless removal is deemed necessary. Criteria for evaluating the necessity for removal shall include the following:
 - (a) The health of the tree, whether it is dead or diseased beyond remedy, or whether it is likely to endanger the public or an adjoining property.
 - (b) Other constraints of the site, where the applicant demonstrates to the satisfaction of the Department that no reasonable alternative exists and the removal of a tree is necessary for construction of building foundations, roads, utilities or other essential improvements.
- (2) Trees to be preserved shall be protected during construction. The critical root zone shall be protected by securely staked fencing with a minimum height of 36 inches. No storage or placement of any soil or construction materials, including construction wastes, shall occur within the fenced area. Cables, ropes, signs and fencing shall not be placed on protected trees.
- (3) Abrupt changes of grade shall be avoided within 40 feet of the critical root zone of any trees to be preserved.
- (4) Large or unique trees which cannot be preserved shall be replaced by trees of the same species, in the following manner:
 - (a) For every tree with a caliper of 24 inches DBH or larger, at least five trees with a minimum caliper of three inches to 3.5 inches DBH or at least seven trees with a minimum caliper of two inches to 2.5 inches DBH shall be required.
 - (b) The placement and spacing of the replacement trees shall be appropriate to conditions of the replacement site and is subject to the approval of the Department but shall at a minimum be such as to ensure the health and longevity of the replacement trees.
- (5) Where large or unique trees will be preserved within the area of disturbance, such trees may be used to satisfy the landscaping requirements of § 780-512D(8), E(1)(e) and F(4).

C. Preservation of bicentennial trees. No subdivision or land development shall be approved which includes the destruction of a tree listed in the Allegheny County Register of Bicentennial Trees.

§ 780-507. Protection of significant natural areas.

- A. Allegheny County Natural Heritage Inventory. Every subdivision and land development site plan shall consider and, to the maximum extent feasible, ensure the preservation of natural heritage areas and resources identified in the Allegheny County Natural Heritage Inventory, February 1994 or most recent edition, prepared for Allegheny County by the Western Pennsylvania Conservancy.

- B. Protected resources. Where a proposed subdivision or land development includes an identified natural feature, such as a rare or endangered species, which is regulated by municipal, state or federal law, the applicant shall provide evidence of compliance with any applicable regulation.

§ 780-508. Preservation of historic and archaeological resources.

- A. Identification of resources. Structures and site features which have known historic or architectural significance and locations of known or probable archaeological sites shall be identified on the existing conditions map and described in the preliminary application materials.
- B. Notification to PHMC. Where the presence of such features is known or suspected, or where required by DEP or another permitting agency, the applicant shall notify the Pennsylvania and Historical Museum Commission of the proposed subdivision or land development and request a determination concerning the presence of significant resources from the PHMC.
- (1) A copy of the notification to the PHMC shall be submitted with the application for preliminary approval.
 - (2) The Department shall condition preliminary approval upon the applicant's receipt from the PHMC of a determination that:
 - (a) No significant resources are present on the site or that the proposed subdivision or land development will not adversely impact resources that may be present.
 - (b) Significant resources are present or likely to be present on the site, together with an approved plan or program for the mitigation of any adverse impacts of the proposed subdivision or land development upon the historic or archaeological resource, if required by the PHMC.
 - (3) A copy of the required determination by the PHMC shall be submitted with an application for final approval, and no subdivision or land development requiring such a determination shall be finally approved without it.
- C. Municipal historic districts. If a proposed subdivision or land development is located within an historic district established by the municipality, the applicant shall provide evidence that the municipal body empowered to approve development activities within the historic district has reviewed and approved the proposed subdivision or land development. A copy of the municipal approval shall be required prior to final approval of an application.

§ 780-509. Protection of air and water quality.

- A. Air quality. An application for preliminary approval of a nonresidential land development shall include a written certification from the Allegheny County Health Department that the Health Department has been notified of the proposed development and that the applicant has been apprised in writing of the County air pollution control requirements. If a preliminary plan is not required, the certification shall be submitted with the application for final approval.
- B. Water quality. All subdivisions and land developments shall comply with all laws and regulations of the federal government, Commonwealth of Pennsylvania, and County of Allegheny concerning water quality.
- (1) All earth disturbance activity shall be carried out in accordance with a soil erosion and sedimentation pollution control plan prepared in accordance with regulations of the Department

of Environmental Protection, which has been submitted to and determined to be adequate by the Allegheny County Conservation District.

- (2) Every subdivision and land development shall be supplied with sanitary sewage facilities in accordance with all requirements of the Department of Environmental Protection and the Allegheny County Health Department (see § 780-514).
- (3) Any site proposed for development that is wholly or partly within a designated wellhead protection area shall comply with the wellhead protection ordinance of the municipality in which the land is located. Proposed subdivisions and land developments in areas where municipal wellhead protection regulations are not in effect shall comply with the provisions for wellhead protection in Appendix 6.²⁹ Appendix 6 is hereby incorporated as part of this chapter. Subdivision and land development plans in areas subject to the provisions of Appendix 6 shall be reviewed by the Allegheny County Health Department and approved by the Department.

§ 780-510. Avoidance of hazardous development.

- A. Landslide-prone areas. No grading, removal of vegetation, construction or other disturbance shall be permitted on soils that are classified as slide-prone or unstable in the soil survey of Allegheny County, on any land that is delineated as unstable on the Landslide Susceptibility Map of Allegheny County, or on any other areas of a proposed development site that exhibit signs of instability, except in accordance with the provisions of this section.
 - (1) Unstable areas of a site may be set aside as common or private open space.
 - (2) Limited disturbance of unstable areas may be allowed if the applicant demonstrates to the satisfaction of the Department that the proposed disturbance will not cause sliding or movement or any unsafe condition either on the development site or on any property adjacent to it.
 - (3) Evidence of the safety of any proposed disturbance shall require site investigation and certification in writing by a professional engineer that the proposed activity will not create or exacerbate unsafe conditions. The geotechnical analysis shall be conducted by a registered professional engineer in Pennsylvania with geotechnical training and experience.
 - (4) Any disturbance shall be revegetated with hardy, indigenous vegetation to help stabilize the slopes. Per § 780-512B(2), the planting of invasive species is prohibited.
- B. Undermined areas. No land development involving construction of buildings and no subdivision of land intended to create lots for building construction shall be approved on a site which has been undermined at shallow depths or in an area where there is evidence of past subsidence unless the applicant demonstrates that the proposed subdivision or land development will be safe and will not create hazards for adjacent properties. Evidence of safety shall be one of the following:
 - (1) If the site or any area of the site has been undermined and has 100 feet or less of overburden, evidence of the safety of the proposed subdivision or land development shall require site investigation and certification in writing by a professional engineer, experienced in subsidence risk assessment, that the proposed development will be safe.
 - (2) If the site has been undermined and has more than 100 feet of overburden, a subsidence risk assessment by a professional engineer and written certification that the proposed subdivision or

29. Editor's Note: Appendix 6 is included at the end of this chapter.

land development will be safe may be required if the Department, municipality, or applicant has knowledge of any past occurrences of subsidence in the general vicinity of the site.

- C. Flood-prone areas. To the maximum extent feasible, new development should not be undertaken in areas subject to period flooding, including identified floodplain areas and flood hazard areas, as determined by the Federal Emergency Management Agency (FEMA), or in other areas where FEMA maps and studies have not been provided but which may be flood-prone as indicated in local records and histories, field studies or on-site investigations.
- (1) Portions of proposed development sites that are susceptible to flooding should be preserved as open space and for uses that will not be harmed or cause hazards if exposed to inundation by floodwaters.
 - (2) Construction in the floodway portion of a flood-prone area shall comply with DEP regulations.
 - (3) Where development is necessary in an area delineated as within the one-hundred-year floodplain on a FEMA map, all construction shall comply with municipal floodplain regulations and with the minimum requirements of the Pennsylvania Department of Community and Economic Development.
- D. Contaminated sites. The Department shall not approve the subdivision or development of land which is known to contain substances which are classified as hazardous unless the site has been made safe for the proposed development.
- (1) A contaminated site shall be considered safe for subdivision or development when a remediation plan has been completed and approved by DEP, subject to the provisions of Subsections D(2) and (3) hereunder.
 - (2) If a remediation plan includes limitations on uses or other site restrictions that would not apply to other property in the same zoning district, the Department may require that the proposed subdivision or land development, including any restrictions on uses or other limitations imposed by the remediation plan, be approved by the municipal governing body.
 - (3) The subdivision of contaminated land, not including any development or earth disturbance, may be approved prior to remediation if a notation approved by the Department is placed on the recorded plan which indicates that the site or specified lots within the site contain or may contain hazardous substances.
- E. Areas exposed to aircraft noise or airport-related hazards.
- (1) Noise-impacted areas.
 - (a) Subdivisions and land developments located in areas which are impacted or projected to be impacted by high levels of aircraft-related noise, as delineated in the most recent airport noise contour maps, shall comply with one of the following two options:
 - [1] Land shall be subdivided or developed only for uses that are compatible with existing and projected noise levels.
 - [2] Structures shall be soundproofed in accordance with standards promulgated by the Allegheny County Department of Aviation.
 - (b) In addition, a notation shall be placed on a plan of subdivision in a noise-impacted area that lots may be exposed to high levels of airport-related noise.

- (2) Airport hazard areas. Subdivisions and land developments located in areas where development may create hazards to aircraft because of height, illumination or other features that may interfere with aircraft takeoffs and landings shall be designed and constructed so as not to create hazards to aircraft.
 - (a) Land development shall comply with applicable municipal airport zoning regulations and with federal and state regulations requiring submission of notice of proposed construction or alteration.
 - (b) If notice of proposed construction or alteration is required, the applicant shall provide copies of permits or approvals of the proposed land development from the PennDOT Bureau of Aviation and the Federal Aviation Administration or a copy of a notification from those agencies that a permit is not required.
- (3) Subdivisions and land developments shall comply with any conditions of the PennDOT and FAA permits and municipal zoning regulations, including notation of restrictions on the plan for recording where applicable.

§ 780-511. General layout of subdivisions and land developments.

- A. Purpose. The design and layout of blocks, lots, and streets shall promote connectivity, access, and mobility for vehicles, pedestrians, and bicyclists to the maximum extent feasible. An interconnected network of streets, sidewalks and pathways shall link destinations within the development. Points of connection to the existing and planned transportation networks outside of the development shall be considered. In older, established communities, the layout of blocks and streets in new subdivisions and land developments should continue the pattern of existing, adjacent streets and blocks where feasible.
- (1) Subdivisions and land developments shall provide, at a minimum, the following access points:
 - (a) For developments containing 25 or more lots or generating 250 or more daily trips, there shall be a minimum of two functional access points located on different sides of the development, except where infeasible due to original tract dimensions or topography.
 - (b) For developments containing only one access point, an emergency service access shall be provided in addition to the primary access and shall be maintained to provide continual ingress and egress for emergency vehicles. The emergency service access may be grassed or landscaped with traversable vegetation or may be gated, provided that gates are able to be opened by emergency service personnel.
 - (2) To ensure future street connections to adjacent developable parcels, a proposed development shall provide a local street connection spaced at intervals not to exceed 800 feet along each boundary that abuts potentially developable or redevelopable land.
 - (3) Blocks in a residential subdivision shall generally be of sufficient depth to accommodate two tiers of lots, except double or reverse frontage lots are permitted to border an arterial or collector road or where a barrier such as a watercourse or railroad is present.
 - (4) Blocks along arterial streets shall not be more than 1,200 feet in length.
 - (5) The requirements of Subsection A(2), (3), and (4) above may be waived if the applicant can demonstrate that meeting these requirements is not feasible due to topographic features, existing development, or a natural area or feature.

- (6) For blocks 800 feet or more in length, interior pedestrian walks may be required to provide for safe and convenient pedestrian access. Such walks shall be located close to the center of the block and protected by an easement or other form of legal agreement.

B. Lots.

(1) General standards.

- (a) Lots shall be laid out so as to provide buildable areas, accessible driveways and usable yards and open space areas with the minimum possible disturbance to the site.
- (b) Lots and building sites shall be laid out with consideration given to the provision of adequate solar access and air circulation. New development shall be accomplished such that excessive winds are neither created or exacerbated.
- (c) Lots and building sites shall be laid out and buildings sited with consideration given to views and privacy.

(2) Specific standards.

- (a) Lots shall meet the minimum dimensional and area requirements specified by the municipal zoning ordinance.
- (b) Lots shall be laid out and graded to provide positive drainage away from buildings and water wells.
- (c) In general, lots shall abut on public streets. The Department may waive this requirement and permit private streets in commercial or industrial subdivisions or developments or in planned residential developments, with the approval of the municipal governing body.
- (d) Lots which require access to an arterial or collector street shall be avoided. Where lots adjoin arterial or collector streets, access to such lots shall be from service or minor access roads.
- (e) Lots that have frontage along two or more streets shall provide along each street the minimum front setback required by the municipal zoning regulations.
- (f) Side lot lines shall be at right angles or radial to street right-of-way lines.
- (g) Remnant land areas which are not buildable under the municipal zoning regulations shall not be permitted. Such remnants shall be incorporated into existing or proposed lots or dedicated to public use if acceptable to the municipality.

C. Other design considerations.

- (1) Views. The design of a land development shall consider views of the development site, as well as views from the site and through the site.
 - (a) Views of the development site. The placement of buildings, screening elements, and landscaping shall be planned so that rooftop mechanical equipment, service and loading areas are not visible from adjacent public areas, streets, or residential areas. Parking areas should also be designed, landscaped and screened or buffered so that potentially negative impacts on adjacent public or residential areas are avoided or reduced to the maximum extent possible.

- (b) Views from the development site. If a development site has scenic qualities, either internally or because scenic features are visible from the site, development shall be planned to preserve those scenic site features and views.
 - (c) Views through the development site. If a development site is located between a public road or other viewing place, such as a park, and a scenic view such as a river or wooded hillside, the design of the development shall preserve visual access through some portion of the site so that people can continue to see the scenic area.
- (2) Land development adjacent to rivers. The design of a land development which has river frontage or is across a road or railroad from a river shall, where possible, provide physical and visual access to the riverfront or to the top of the riverbank for residents, occupants, and users of the proposed development.
- (a) Streets shall be located and designed so that public access to the riverfront is not impeded or blocked.
 - (b) Pedestrian walkways shall be located and designed to enhance public access to the riverfront.
 - (c) Where allowed by zoning, land uses in developments along a river shall be arranged so that uses which are public or open to the public are nearest the river.
- (3) The arrangement, character, and location of all lots, blocks, and streets in a development shall be designed to make advantageous use of existing and planned streets, topographical conditions, public convenience and safety, mature trees, and other natural physical features.

§ 780-512. Landscaping.

- A. Purpose. The standards contained in this section are intended to promote public health, safety and welfare by filtering noise, softening or diverting light and glare, modifying climatic conditions such as wind and heat and reducing stormwater runoff and air pollution. The standards contained in this section are also intended to increase the value to the community from new developments by recognizing the role that landscaping plays in overall community appearance and livability.
- B. General requirements.
- (1) In general, all areas of a site proposed for development shall be landscaped with trees, shrubs, ground covers, grasses and other herbaceous plants, except for those areas which are occupied by buildings and other structures and facilities or are paved.
 - (2) Landscaping shall not include any plants documented on the Pennsylvania DCNR "Invasive Plants in Pennsylvania" list. The planting of hardy indigenous species is encouraged.
- C. Landscaping defined. Landscaping shall be understood to include the provision of street trees, buffer yards, replacement woodlands, and other new planted areas. Landscaping shall also be understood as the provision of undisturbed ground, where such is fully integrated into the design and layout of the subdivision or land development and preserves existing natural features of the site.
- D. Street trees. All new residential and nonresidential developments shall provide street trees, in addition to any replacement trees required by § 780-506, in accordance with the following standards:
- (1) Street trees shall be provided along the entire length of the street right-of-way on both sides of

the street if the street lies within the development.

- (2) Street trees in residential subdivisions shall be located within five feet of the right-of-way and in nonresidential developments between the right-of-way and the building line. An easement shall be granted to the municipality for the purpose of maintaining the trees, and a restrictive covenant shall be placed in the deed for the property prohibiting removal of the trees by the property owner.
 - (3) Street trees shall be located so as not to interfere with the maintenance of utilities, required sight distances and visibility of street and traffic signs.
 - (4) The species chosen shall be appropriate to the location. Factors such as microclimate, soils, habit of growth, salt, air pollution and disease tolerance, proximity of sidewalks and overhead utility lines, and social conditions (likelihood of soil compaction, vandalism, damage by dogs, deer, etc.) shall be considered. Tree species shall be selected that do not have root structures that may damage adjacent sidewalks or utilities.
 - (5) Street trees shall have the following minimum calipers at the time of planting:
 - (a) Large trees, defined as those trees whose height will ultimately exceed 40 feet, shall have a minimum caliper of 2.5 inches to 3.0 inches DBH.
 - (b) Medium trees, defined as those trees with an ultimate height of 25 feet to 40 feet, shall have a minimum caliper of 2.0 inches to 2.5 inches DBH.
 - (c) Small trees, being those trees whose ultimate height will not exceed 25 feet, shall have a minimum caliper of 1.5 inches to 2.0 inches DBH.
 - (6) Street trees shall be spaced with regard to the ultimate spread of the fully developed canopy. Spacing requirements are as follows:
 - (a) Large and medium trees shall be spaced at a maximum distance not to exceed the average spread of the fully developed canopy plus five feet.
 - (b) Small trees shall be spaced a maximum distance of 25 feet on center.
 - (7) Tree grates and/or permanent fencing may be required to protect new street trees in areas of dense development or high use.
 - (8) Mature trees, woodlands or other significant vegetation which remains undisturbed adjacent to the street right-of-way may be used in place of or in conjunction with the requirements of this section.
 - (9) Pervious pavement shall be utilized where necessary to provide water infiltration to support tree growth.
- E. Landscaping of parking lots. All new parking areas that have 10 or more parking spaces, or any existing parking area that will be expanded by five or more parking spaces, shall be landscaped in accordance with the following provisions:
- (1) Perimeter landscaping. Where the parking area is adjacent to any public street, walk, right-of-way, or neighboring properties, the perimeter of the parking lot shall be landscaped. Such landscaping shall be in addition to any required buffer yard plantings but may be in conjunction with any required adjacent street trees. Landscaping shall be provided in accordance with the

following criteria:

- (a) The landscaped area shall be at least 10 feet wide.
 - (b) The landscaped area shall be planted with large, medium tree, or small trees, spaced as per Subsection D(6), and sufficient shrubs or grasses sufficient to form a hedge or a screen. The height of hedges and screens at the time of planting shall not be less than 2.5 feet.
 - (c) The caliper of all new trees shall be as in Subsection D(5) above.
 - (d) Masonry walls, fencing, berms or a combination thereof may also be used. Walls, fences and berms adjacent to neighboring properties shall have a minimum height of 3.5 feet. Berms shall have maximum slopes of 33% and shall be completely covered with shrubs, grasses or other plant material. Walls or solid fencing shall be planted with at least one shrub or vine per 10 lineal feet of wall. Nonsolid fencing shall be planted with at least three shrubs or vines per 12 lineal feet.
 - (e) Mature trees, woodlands or other high-quality existing vegetation which remains undisturbed between the parking area and the right-of-way or adjoining properties may be used to satisfy the requirements of this section. New shrubs or trees may be added as needed to help provide an effective screen.
 - (f) Screening requirements adjacent to public streets, walks or rights-of-way may be modified in circumstances where public safety is a concern.
- (2) Landscaping in interior areas. Landscaping in the interior of parking areas shall be designed to provide visual and climatic relief from large expanses of paving, to channelize vehicular traffic and to define areas for safe pedestrian circulation.
- (a) At least 5% of the total area of any parking lot containing 30 spaces or less shall be landscaped, and at least 7% of any parking lot containing more than 30 parking spaces shall be landscaped.
 - [1] The landscaped area can take the form of a rain garden or bioswale designed to capture and treat stormwater. At a minimum, the rain garden or bioswale shall be planted with a fine, close-growing water-tolerant species that provide large amounts of vegetative surface area for contact with stormwater.
 - [2] The rain garden or bioswale shall be a minimum of 10 feet wide.
 - [3] The rain garden or bioswale should be provided between head-to-head parking rows.
 - [4] The rain garden or bioswale and parking areas shall be graded to direct runoff to the median and accommodate stormwater infiltration.
 - (b) At least one large tree and three shrubs, or one medium tree, one small tree and three shrubs, shall be planted per 10 parking spaces.
 - (c) The caliper of all new trees shall be as in Subsection D(5) above.
 - (d) Trees required in this section shall be planted in protected areas such as along walkways or within curbed islands located between rows of parking spaces, at the ends of bays, or between parking stalls.

- (e) Curbed landscaped islands shall have a minimum width of nine feet or a minimum radius of 4.5 feet, exclusive of the curbing.
- (f) The requirement to curb parking areas shall be waived if stormwater is directed to a low-impact stormwater treatment method, such as the rain garden or bioswale described in Subsection E(2)(a). Alternate measures to protect landscaping from damage by vehicles shall be provided.

F. Buffer yards.

- (1) Purpose. In addition to the yards which municipal zoning ordinances require on all or most lots, additional landscaped open space or buffer yards may be needed to provide greater separation where disparate or incompatible land uses are located on adjacent sites. However, careful site planning can minimize the need for constructed buffer yards. Uses should be arranged to avoid locating incompatible uses in close proximity. Natural topographic and vegetative features of a development site should be used to separate uses which may impact negatively on each other. This subsection includes requirements for buffer yards that apply where land uses with differing visual, functional and operational characteristics are located in close proximity. These situations are most likely to arise within multiuse land developments, on development sites that are located at the edges of zoning districts, and on development sites bordering major highways, railroads and public transit lines.
- (2) Application. If the zoning ordinance of the municipality in which a proposed subdivision or land development is located contains standards for buffer yards, the municipal standards shall apply. If the municipality has no applicable regulations, the standards contained in this subsection shall apply.
- (3) Calculation of buffer yard requirement. The type of buffer yard and the extent of planting or other screening that must be provided within it shall be a function of the difference or incompatibility between adjacent land uses.
 - (a) Land use compatibility classes. The magnitude of incompatibility shall be determined in accordance with Table V-1, which categorizes land uses into six compatibility classes. Uses within each class are assumed to be similar in visual, functional and operational characteristics and require no separation beyond yards required by zoning and landscaping required by other subsections of this section. Requirements for buffer yards, planting and screening increase as the numerical difference between compatibility classes increases.
 - (b) Buffer yard types. Table V-2 defines five types of buffer yards, ranging from 10 feet to 70 feet in width, which shall be required to separate land uses in different compatibility classes. The planting and screening component of each buffer yard type is described qualitatively in terms of the result to be achieved, rather than quantitatively.

Table V-1: Land Use Compatibility Classes

Compatibility Class	Land Uses
1	Single-family residential, passive recreation, historic resources
2	Multifamily residential, townhouses, mobile home parks, primary schools, cultural facilities, public recreation
3	Business, professional and government offices; small-scale neighborhood and commercial
4	Hotel, motel, conference center; commercial recreation; general commercial; office park, secondary schools, government public safety facilities
5	Wholesale, warehousing, construction-related, light industrial, community shopping center, major freestanding retail, government public works
6	Heavy industrial, regional shopping centers, stadiums, expressways and major arterial highways, railroads, transit corridors, transportation terminals

Table V-2: Buffer Yard Types

Buffer Yard Type	Description of Buffer Yard Objective	Width (feet)
A	Minor separation; partial visual screening; trees, hedge, 3-foot to 4-foot fence appropriate	10
B	Moderate separation required; total visual screening; varied landscape materials; hedge, fence as above	20
C	Substantial separation; total visual screening; varied landscape materials; solid fence or berm appropriate	40
D	Major spatial separation; total visual screening plus mitigation of noise, lights, traffic through heavy landscaping, solid fence or berm appropriate	55
E	Maximum spatial separation; total visual screening plus mitigation of traffic, noise, lights, emissions	70

- (c) Required buffer yard. Table V-3 specifies the buffer yard type which must be provided to separate land uses in different compatibility classes.

Table V-3: Required Buffer Yard Type

Proposed Use Class	Existing Class of Adjacent Use or Zoning District					
	1	2	3	4	5	6
1	*	A	B	C	D	E
2	A	*	A	B	C	D
3	B	A	*	A	B	C
4	C	B	A	*	A	B
5	D	C	B	A	*	A
6	E	D	C	B	A	*

NOTES:

* Buffer yard not required in same use class.

- (d) Options for flexibility. The Department may permit the provision of a narrower buffer yard in combination with denser planting and/or screening devices if the applicant demonstrates that a narrower buffer yard will provide acceptable mitigation of the effects of heavy traffic, noise, glare, fumes and other potential impacts and that the proposed plant materials will be able to thrive if spaced more closely.
- (4) Required plantings. Buffer yards shall be planted with a mix of trees, shrubs, grasses, and perennials. The use of hardy indigenous species is encouraged. Minimum caliper of trees shall be as specified in Subsection D(5). Quantities and spacing of plant material shall be determined by the density of screening needed. Existing natural features, woodlands or other high-quality existing vegetation preserved within the buffer yard may be used to satisfy planting requirements.
- (5) General standards for buffer yards.
- (a) Buffer yards shall be provided by the applicant along the perimeter of the site or lot and shall extend to the property or right-of-way line. Different buffer yards may be required along various portions of the site perimeter if more than one category of land use adjoins the site.
- (b) Buffer yards shall be maintained by the owner of the property. Buffer yards shall be kept free of trash, debris and graffiti at all times. Plant materials shall be inspected yearly, and all dead, diseased and damaged plant materials shall be replaced.
- (c) No structure or vehicular use areas, buildings, accessory uses, utilities, light standards, etc., shall be permitted in a buffer yard. Access drives are permitted only in buffer yards which separate a proposed development from a street.
- (d) Buffer yards may be used for passive recreation uses such as pedestrian and bicycle trails, provided that the required separation and screening is maintained.
- G. Foundation plantings. In all land developments that propose the construction of a new multifamily residential building or a new nonresidential building, 50% of the length of a building facade that faces

a public street shall include foundation plantings immediately adjacent to the building.

- (1) The plantings shall include a combination of ground cover, shrubs and flowering perennials.
- (2) The minimum height of shrubs at the time of planting shall be 36 inches.
- (3) Foundation plantings shall be shown on the landscaping plan that is required to be submitted with the application for final approval of the land development.
- (4) The plant materials proposed and the design of the foundation plantings shall be subject to approval by the Director.
- (5) The planting and maintenance of the required foundation plantings shall be the shared responsibility of the developer, the builder and the landowner. Occupancy permits may be withheld if the required plantings have not been installed. Between November 1 and April 1, temporary occupancy permits may be issued subject to the posting of a bond or other financial security to guarantee the installation of the required foundation plantings during the ninety-day period beginning April 1.

§ 780-513. Water supply.

- A. Water supply required. An adequate supply of potable water shall be provided for every building to be used for human occupancy or habitation in a subdivision or land development.
- B. Public water systems.
 - (1) Where an existing public water system is accessible to or can be extended to the proposed development site, the applicant shall provide a complete on-site system with connections to such public water system in conformance with the standards and requirements of DEP and the water supplier whose facilities will serve the development.
 - (2) Where an existing public water system is not accessible to the proposed development, water may be supplied by a new public water system, subject to the approval of DEP and the Allegheny County Health Department.
 - (3) In the case of Subsection B(1) or (2), the applicant shall present evidence to the Department that the subdivision or development is to be supplied with water by a certificated public utility, a bona fide cooperative association of lot owners, or by a municipal corporation, authority or utility. A copy of a certificate of public convenience from the Pennsylvania Public Utility Commission or an application for such certificate, a cooperative agreement or a commitment or agreement to serve the area, whichever is appropriate, shall be acceptable evidence.
 - (4) Hydrants. Subdivisions and land developments to be served by public water systems shall be provided with fire hydrants which meet all specifications of the municipality and fire company which will serve the development.
- C. Individual water systems.
 - (1) Where public water supply systems, as defined in the Allegheny County Health Department Rules and Regulations, Article XV, Plumbing and Building Drainage, Chapter 17 [Chapter 6, Part 15], are inaccessible and cannot be extended to the proposed development site, the applicant may provide potable water through individual water supplies, designed and constructed in conformance with the standards and requirements of the Health Department.

- (2) The use of private water systems shall not be permitted in any subdivision or land development with more than 10 lots, unless the applicant provides hydrogeologic data, acceptable to the Health Department, assuring that adequate quantity and quality of water are available.
- (3) Private water systems and individual water supplies may be permitted to be located off site, provided that a permanent easement is recorded on the final plan, a legal agreement that sets forth clearly all of the rights and responsibilities of all affected parties is executed, and all other applicable provisions of this section are met.

§ 780-514. Sanitary sewage facilities.

A. Sanitary sewage facilities required. All subdivisions and land developments, unless excepted in Subsection B below, shall be provided with sanitary sewage facilities which are in accordance with the municipal sewage facilities plan and which have been approved by the Allegheny County Health Department, the Pennsylvania Department of Environmental Protection, and the municipality, authority or other public agency responsible for the collection, conveyance and treatment of sanitary sewage in the municipality in which the development is located.

- (1) Sanitary sewage facilities approval required; conditional final approval.
 - (a) No plat shall be finally approved or recorded until the plans and specifications for sanitary sewage facilities have been approved and permits issued, as required, by the Health Department and/or the DEP.
 - (b) Conditional final approval may be granted; however, provided that the complete Sewage Facilities Planning Module, as required for the proposed development, has been approved by the municipality in which the proposed development is located and transmitted by the municipality to the Allegheny County Health Department and/or Pennsylvania Department of Environmental Protection, together with a resolution adopting the revision to its sewage facilities plan, if required.
- (2) All sanitary sewers and related facilities shall be constructed in accordance with requirements of DEP, the construction standards of the municipality, and the Allegheny County Health Department Rules and Regulations, Article XV, Plumbing and Building Drainage [Chapter 7, Part 15].
- (3) Private sanitary sewer systems may be permitted to be located off site, provided that a permanent easement is recorded on the final plan, a legal agreement that sets forth clearly all of the rights and responsibilities of all affected parties is executed, and all other applicable provisions of this section are met.

B. Exceptions.

- (1) Plat adjustments. Sewage facilities shall not be required for subdivisions that are classified as plat adjustments in this chapter and where no new buildable lots are created.
- (2) Plans with no new development. Subdivisions and land developments in which no development of buildings or improvement of land for purposes requiring sewage facilities is proposed need not provide sanitary sewage facilities, provided that a properly executed "Form B - Request for Non-Building Waiver" (PADEP Bureau of Water Quality Management form ER-BWQ-349:6/92) has been submitted to and approved by DEP. Where a waiver is approved by DEP, the final plan for recording shall include the notation specified in Appendix 3, Subsection 7A.³⁰

§ 780-515. Stormwater management.

- A. Management of runoff required. Every subdivision or land development which will affect stormwater runoff characteristics shall include provision for the management of runoff to comply with the following:
- (1) Development in areas where municipal stormwater management regulations have been enacted. Proposed subdivisions and land developments located in municipalities or areas of municipalities where municipal stormwater management regulations have been enacted shall comply with the municipal regulations. Stormwater management plans for proposed development in those areas and municipalities shall be approved in accordance with the municipal regulations and reviewed by the County, where County review is required by the municipal ordinance.
 - (2) Development in areas where municipal stormwater management regulations are not in effect. Proposed subdivisions and land developments located in areas where municipal regulations are not in effect shall comply with the provisions for stormwater management contained in Appendix 5.³¹ Appendix 5 is hereby incorporated as a part of this chapter.
 - (3) Stormwater management plans for proposed development in areas subject to the provisions of Appendix 5 shall be reviewed by the municipality and approved by the Department.
- B. Implementation and enforcement of stormwater management plans.
- (1) Where governed by municipal regulations. Implementation of stormwater management plans including construction of facilities and provision for inspection, operation, and maintenance of facilities for developments in areas subject to municipal regulations shall comply with the municipal regulations.
 - (2) Where governed by provisions of Appendix 5. Implementation of stormwater management plans, following approval by the Department, shall be in accordance with the provisions of Article III, § 780-303D, E, F and G. Enforcement procedures and remedies for violation of the provisions for stormwater management shall be in accordance with Article I.
- C. Nonstructural management techniques preferred. All stormwater management plans shall utilize nonstructural techniques, where feasible, to reduce the volume and rate of flow of stormwater runoff and to minimize the need for detention facilities.
- (1) These techniques are described in the Pennsylvania Stormwater BMP Manual and may include:
 - (a) Natural conservation areas.
 - (b) Stream buffers.
 - (c) Utilization of existing natural stormwater features.
 - (2) Where stormwater management plans are subject to approval by the Department, the Department may require the revision of the development plan and stormwater management plan to increase the utilization of nonstructural stormwater management techniques.
- D. Certain structural stormwater management practices are preferred to the commonly used detention

30. Editor's Note: Appendix 3 is included at the end of this chapter.

31. Editor's Note: Appendix 5 is included at the end of this chapter.

facilities. Where feasible, to reduce the need for and size of detention facilities and to reduce the volume and rate of stormwater runoff, the structural BMPs in the Pennsylvania Stormwater BMP Manual should be used. The following structural stormwater management practices are preferred:

- (1) Enhanced infiltration techniques, including pervious pavement, infiltration trenches, rain gardens, vegetated swales and vegetated filter strips.
 - (2) Constructed wetlands or wetland restoration.
 - (3) Floodplain restoration.
 - (4) Reduced use of curbs allowing stormwater runoff to flow through vegetated filter strips prior to collection.
 - (5) Level spreaders are not preferred, but may be used in certain situations (e.g., where there is no on-site channel for stormwater discharge), provided that the level spreaders are not located at the top of a slope.
- E. To the maximum extent permitted under the MPC and PA Act 167,³² as amended, new land developments shall provide for conveyance and discharge of all surface water runoff to discharge outlet(s) within the same watershed at locations acceptable to the municipal engineer to minimize flooding and soil erosion/sedimentation.
- F. When a new flow crosses an adjacent landowner's property, a stormwater easement must be obtained and shown on the land development plans.
- G. To the maximum extent permitted under the MPC and PA Act 167, as amended, redevelopment areas with existing stormwater infrastructure are required to upgrade the affected stormwater infrastructure to current standards to the extent economically and technically feasible.
- H. Where governed by the provisions of Appendix 5, all regulated stormwater management facilities shall be designed, implemented, operated and maintained to meet the purposes and requirements of Appendix 5, Pennsylvania Code Title 25, the Clean Streams Law, and PA Act 167.

§ 780-516. Other utilities and easements.

- A. General requirement. Subdivisions and land developments shall be served by gas, electric, cable television, and telephone service distribution systems, where these systems are accessible to the development. Renewable energy systems such as geothermal heating and cooling, solar energy generation, and wind power generation are strongly encouraged.
- B. Easements. Easements for public and private utilities shall comply with the requirements of the utility providers and with the following standards:
- (1) Easements shall be adjacent to property lines where possible.
 - (2) Minimum widths for utility easements shall be 20 feet for public utilities and 10 feet for private utilities. Utility companies shall use common easements wherever possible.
- C. Underground wiring.
- (1) Electric, telephone, television and other communication service lines shall be provided by

32. Editor's Note: See 32 P.S. § 680.1 et seq., the Pennsylvania Storm Water Management Act.

wiring placed underground within easements or dedicated rights-of-way, installed in accordance with the prevailing standards and practices of the utility or other companies providing such services unless the applicant demonstrates to the Public Utilities Commission that physical conditions render such underground installation infeasible.

- (2) If a lot abuts an easement or right-of-way with existing overhead electrical, telephone, television or other service lines, the lot may utilize the overhead lines, but service connections shall be installed underground. Where a subdivision or land development requires a road widening or service extension which necessitates the replacement or relocation of overhead lines, replacement or relocation may be underground, in accordance with the requirements of the Public Utilities Commission.
- (3) Where overhead lines are permitted, the placement and alignment of poles shall be designed to lessen the visual impact of overhead lines as follows:
 - (a) Alignments and pole locations should be routed to avoid locations along horizons.
 - (b) Poles should be located so that the need to clear swaths through treed areas is avoided or mitigated.
 - (c) Trees should be planted in open areas and at key locations to minimize the view of the poles and lines.
 - (d) Alignments should generally follow rear lot lines.
- (4) Utility apparatus placed above the ground, other than utility poles, shall be screened with plant materials.

§ 780-517. Parks, open space and recreation facilities.

A. General provisions.

- (1) Purpose.
 - (a) The purpose of this section is to encourage or require the provision of land and facilities for open space and recreational uses in new land developments. Open space and recreational facilities are important to the public health and welfare, and the quality of life in communities is enhanced when areas are available for active and passive recreational use. Areas and facilities for recreational use are desirable in both residential and nonresidential developments and may include a wide range of areas and facilities such as tot lots, playgrounds, game courts and playing fields, parks, landscaped plazas, picnic areas, hiking and biking trails, and greenways.
 - (b) Parks, open space, and recreation facilities provide economic benefits by attracting and retaining businesses, increasing property values by making communities more desirable, enhancing place identity, and reducing public costs through better management of natural events such as flooding.
- (2) Intent. The intent of this section is to encourage or require the public dedication or private reservation of land for recreational use, the construction of facilities, payment of fees in lieu of dedication, or combination thereof only in accordance with Section 503(11) of the MPC.³³

33. Editor's Note: See 53 P.S. § 10503(11).

- (3) Mandatory provision of land for recreation. If a municipality has formally adopted a recreation plan, land suitable for recreation and open space shall be provided in accordance with the requirements of Subsections B, C and D hereunder. Preference will be given to land prioritized in the municipal recreation plan or Allegheny Places. To ensure consistency with Allegheny Places, the following land will be prioritized for dedication:
 - (a) Greenways that provide connections between people, recreational facilities, cultural facilities, or significant public areas.
 - (b) Environmentally sensitive lands identified in the Allegheny Places Greenway Map, including, but not limited to, biodiverse areas, floodplains, steep slopes, forested areas, landslide-prone areas, riparian corridors, and wildlife corridors.
 - (c) Lands that facilitate public access to riverfronts.
 - (d) Land that expands or improves an existing park or trail system.
- (4) Voluntary provision of land and facilities. If a municipality has not formally adopted a plan for recreation, compliance with the provisions of this section shall be voluntary, but land developments should include open space areas and facilities to meet the recreational needs of residents, employees and other users of proposed developments. Often recreational use may be made of areas where development is restricted for environmental reasons. There may be opportunities to link open space within a development to open space in adjoining areas and to create, over time, continuous systems of open space that will add great value to a development and to the community. Although voluntary, land that meets the standards established in § 780-517A(3) are strongly encouraged for dedication.

B. Parks, open space and recreation facilities for residential development.

- (1) Purpose. Parks and recreation facilities provide open space for conservation of environmentally sensitive features and for active and passive recreational needs. The purpose of this subsection is to provide for the park and recreation needs of new residential development. These requirements are intended primarily for recreation rather than environmental protection purposes; however, it is not the intent to prohibit parks or recreation facilities in environmentally sensitive areas if compatible with the primary recreation goals of this subsection.
- (2) Amount of land required. Residential land developments which will contain 10 or more dwelling units shall provide open space for recreation purposes at a rate ranging from 6.25 acres to 10.50 acres per 1,000 estimated population, which is equal to approximately 270 to 350 square feet per person. This standard is based upon recommendations of the National Recreation and Park Association for local recreation space within neighborhoods and communities and may be adapted to reflect specific recommendations of a municipal park and recreation plan, existing facilities near the development site, and the character and suitability of land within the site for park and recreation purposes.
- (3) Characteristics. Land proposed to be dedicated or reserved for park and recreation purposes shall meet the following standards:
 - (a) Minimum size. Recreation and open space sites shall be of sufficient size for the recreation uses that are identified in the municipal park and recreation plan. Where there is no municipal plan or if the municipal plan does not specify, the minimum size of a recreation site shall be 10,000 square feet or such other size as is acceptable to the municipality.

- (b) Slope. At least half of any land area proposed for park and recreation purposes shall have a slope of less than 25% and shall be appropriate for active recreation uses. Steep slopes, exceeding 25%, may be accepted if they are suitable for passive recreation. Any steep slopes proposed for park and recreation purposes shall be undisturbed, not graded, slopes.
 - (c) Flood-prone areas. At least half of any land proposed for park and recreation purposes shall be above the one-hundred-year flood elevation and shall be appropriate for active recreation uses. Land below the one-hundred-year flood elevation may be accepted if it is suitable for recreation uses.
 - (d) Accessibility and usability. Land proposed for dedication shall be usable and accessible to the development for which it is required and to the general public for active or passive recreation activities.
- (4) Ownership. Open space required to be dedicated under this subsection shall be either:
 - (a) Dedicated in fee simple to the municipality, subject to acceptance by the municipality.
 - (b) Deeded in fee simple or by means of a conservation easement or similar conveyance to a nonprofit conservation organization, permanently restricting the open space for recreational use by the public and allowing the public to use and improve the land for open space or recreational purposes.
- (5) Reservation of land, construction of recreational facilities or fee in lieu of dedication. In lieu of dedicating land, a developer may voluntarily agree to construct recreational facilities, reserve private land as common open space, pay a fee in lieu of land dedication, or combination thereof, in accordance with the standards of this subsection.
 - (a) Reservation of private open space.
 - [1] Dimensions and character. The amount, dimensions, and character of the reserved open space shall meet the standards for dedicated open space, as set forth in Subsection B(2) and (3) above.
 - [2] Accessibility. Private open space shall consist of land or water within the site, designed and intended for the use or enjoyment of residents of the development.
 - [3] Ownership. Private land reserved as open space shall be permanently restricted to recreational use and shall be deeded to a property owners' association or to a nonprofit conservation organization, with authority to own and maintain the land. Provisions for use, ownership and maintenance shall be acceptable to the municipality.
 - (b) Construction of recreational facilities.
 - [1] Character of facilities. A developer may construct any facilities identified in the municipal recreation plan or acceptable to the municipality.
 - [2] Accessibility. Recreation facilities shall be accessible to residents of the development and other members of the general public.
 - [3] Ownership. Recreational facilities constructed under this subsection shall be publicly owned and maintained.

(c) Fees in lieu of land dedication.

- [1] Amount. The amount of the fee in lieu of required open space shall be equal to the pre-development fair market value of the land area required to be dedicated and shall be calculated as follows:

$$\text{Fee} = (\text{number of acres required to be dedicated}) \times (\text{average pre-development fair market value, per acre of land in development site}).$$

- [2] Timing of payment. All fees in lieu of required open space shall be paid prior to final approval of the subdivision plat or land development plan unless financial security is provided in accordance with § 780-303F(3).
- [3] Earmarking. Fees authorized by this subsection shall, upon receipt by the municipality, be deposited in an interest-bearing account, clearly identifying the land or recreation facilities for which the fee was received. Interest earned on such accounts shall become funds of that account.
- [4] Use of funds. Funds from such accounts shall be expended only for the acquisition of land or the construction of recreational facilities identified in the municipal recreation plan which are accessible to the residents and users of the proposed subdivision or land development.
- [5] Refunds. If the municipality fails to utilize the fee paid for the park and recreation purposes within three years of the date such fee was paid, the municipality shall refund any fees paid with interest to any person who paid any fee under this subsection who requests a refund.

C. Open space amenities for nonresidential development.

- (1) Purpose. Major nonresidential land uses, such as office buildings and shopping centers, require open spaces to ensure the health, safety and welfare of large numbers of employees and patrons. Outdoor plazas and landscaped open spaces provide safe, pleasant environments for taking breaks, reduce the need to drive to other locations for this purpose, provide a buffer from noise, glare and other adverse effects of high-density development, and increase the attractiveness of new development. The purpose of these standards is to ameliorate the congestion and other adverse impacts on employees, visitors and patrons of major nonresidential developments.
- (2) Applicability. These standards shall apply to any nonresidential land development which will include at least 25,000 square feet of gross leasable floor area devoted to retail, office, commercial, institutional, public or industrial use.
- (3) Open space requirements. In all land development which is subject to the requirements of this subsection, land shall be set aside which is equal to at least 5% of the gross leasable floor area of the development as open space. Such open space shall not include driveways, parking or loading areas or refuse or storage areas.
- (4) Design criteria. Open space areas shall satisfy all of the following criteria:
- (a) Open areas shall be open to public use for walking, seating and eating.
 - (b) Open areas shall be landscaped or covered with decorative surface treatment. Natural

ground cover, such as grass, shrubs, flowerbeds or mulch, are encouraged; however, impervious ground cover may be used, provided that:

- [1] Deciduous canopy trees having a diameter at breast height of at least 2.5 inches are planted.
 - [2] At least one such tree is planted for every 500 square feet of open area.
 - [3] Tree roots are protected by tree grates or, if tree grates are not possible or practicable, by above-grade planters.
- (c) Fountains, art or sculpture, seating, protected walkways, linkages to transit or trail systems, bus shelters, streetlights or other streetscape improvements may be installed in lieu of required landscaping with the approval of the Department.
 - (d) All utilities shall be installed underground.
 - (e) Open spaces and improvements to open spaces shall be depicted on the site plan or landscaping plan, which shall be submitted with the application for land development approval.
- (5) Maintenance agreement. A maintenance agreement for any improvements required under this section shall be submitted by the applicant and approved by the municipality.

D. Dedication or reservation of greenways and trails.

- (1) Purpose. The establishment of greenways provides an important means for the conservation of environmentally sensitive land and natural resources and for the preservation of vegetation and wildlife habitat. The establishment of greenways which are available for public use also provides a variety of recreational and educational benefits. Trails for walking, hiking and biking are important facilities for recreation as well as for nonmotorized transportation. The establishment of greenways and trails improves the quality of life and will help to make municipalities and the County economically competitive with other areas. Both greenways and trails must occupy continuous, linear land corridors and cannot be effectively contained within individual parcels of land. The purpose of this subsection is, therefore, to provide that land which is delineated as a greenway or trail in an adopted plan or on an official map be dedicated or reserved for such use when land is subdivided or developed.
- (2) Dedication or reservation of proposed trails and greenways. The Department may accept the dedication or reservation of greenways which traverse a proposed subdivision or land development. Any land dedicated or reserved under this subsection shall be credited against the requirements of this chapter for the provision of open space, recreational facilities and open space amenities in residential and nonresidential developments, provided that:
 - (a) The land offered for dedication or reservation is designated as a trail or greenway on an adopted plan or official map of the municipality or County.
 - (b) Land offered for public dedication is approved by the municipality or by the County Council if the offer is to the County.
 - (c) Land for greenways and trails not publicly dedicated is deeded to a conservation organization or land trust or privately reserved for such use, provided that there is an agreement which is acceptable to the municipality or to the County, if the reserved land is

part of a County trail or greenway, which ensures the maintenance of land and facilities and which provides for public use at reasonable times.

- (d) The minimum right-of-way width of an easement containing a trail which crosses private land is 20 feet for a multipurpose trail and 10 feet for a single-purpose trail.

§ 780-518. Other community facilities and services.

- A. Purpose. The purpose of this section is to ensure that developers, municipalities and service providers are aware of the potential impacts that proposed development will have upon community services and facilities and to encourage cooperative planning and action to improve or augment facilities and services that are not adequate to meet increased demands created by new development.
- B. Requirement to inform. An applicant for approval of a major subdivision shall inform the providers of public services and facilities of the proposed development, including sufficient information about the development to enable the service provider to determine whether sufficient capacity, facilities and/or equipment are available to serve the new development.
 - (1) Service providers who must be informed may vary, based on the nature of the proposed development and the community in which it is located, but will normally include police, fire and emergency services and school districts. (Requirements concerning public transportation service and approval of street names by the Postmaster are included in § 780-519.)
 - (2) Documentation that the required information was transmitted to appropriate service providers shall be included with an application for preliminary approval. Responses from service providers indicating their ability to provide service to the proposed development may be required prior to final approval.
- C. Options when services or facilities are not adequate. If a public service provider indicates an inability to provide service to a proposed new development, the applicant, service provider and municipality should agree upon a course of action or program to remedy the inadequacy and to ensure service to the new development.

§ 780-519. Transportation facilities.

- A. Purpose. The purpose of this section is to ensure that in new subdivisions and land developments streets, driveways, paths (trails) and sidewalks provide safe and convenient access and accommodate the safe and efficient movement of pedestrian, bicycle and vehicular traffic.
- B. General provisions.
 - (1) Every subdivision shall have access to a public street.
 - (2) All streets shall be named. No new street name shall be permitted which duplicates or which may be confused with an existing street name.
 - (3) All proposed connections to existing streets shall be approved by the jurisdiction owning the existing streets.
 - (4) Where traffic or drainage problems are created by the proposed development, it shall be the responsibility of the applicant to improve both sides of the existing affected road or street or to provide sufficient funds escrowed for use by the municipality for the execution of such public improvements.

- (5) Where appropriate, land shall be reserved for the development of future streets or to connect with adjacent undeveloped land. Reserve strips shall not be permitted. No subdivision or land development shall be approved that will landlock any adjacent parcel.
- (6) Where streets continue into abutting municipalities, the applicant shall coordinate the design of the street with both municipalities in order to ensure uniform cartway widths, pavement cross sections and other public improvements.

C. General design and arrangement.

- (1) The arrangement of streets shall conform to the municipal comprehensive plan, official maps, municipal, County and state transportation plans and the requirements of § 780-511.
- (2) Streets shall provide convenient connections to existing streets and shall not adversely affect circulation patterns or the flow of traffic.
- (3) Streets shall be designed to preserve the natural features and topography of the development site to the maximum extent feasible.
- (4) Local access streets shall be arranged to minimize through traffic, discourage excessive speeds, and provide privacy in residential areas. All local streets, residential or nonresidential, shall be arranged to minimize traffic speed and volume, noise, congestion, and hazards to pedestrians and bicyclists.
- (5) Only residential, outdoor recreation or public service uses may directly access a residential street.
- (6) Streets in a proposed development shall connect with existing or reserved streets along the boundary of an adjacent tract unless topography or other existing feature prevents a connection.
- (7) Where a proposed development abuts or encompasses an existing or proposed collector or arterial street, marginal access streets, reverse frontage lots with buffer yards, or deep lots with rear service alleys may be required in order to protect properties and provide separation of through and local traffic.
- (8) All streets shall be designed to minimize the amount of paved area necessary to safely meet the standards of this chapter.
- (9) All streets shall be designed as complete streets, as defined in Article II, where feasible.

D. Functional classification of streets. The design of a street system shall include the classification of streets based on their functions and projected traffic as shown in Table V-4.

Table V-4
Functional Classification of Streets

Classification	Description	Projected Traffic Volume
Arterial	A public street intended to carry a large volume of local and through traffic, to or from collector streets and expressways; controlled access	3,000+
Collector	Channels traffic from local to arterial or other collector streets; includes main streets within a development	
Residential	No direct access to residential lots.	1,000 to 3,000
Nonresidential	Number of access drives limited; may require marginal access drives	800+
Minor collector	Provides direct access to lots, and conveys traffic from local to collector streets	
Residential	Not more than 500 trips from direct frontage lots permitted	500 to 1,000
Nonresidential	Nonresidential	0 to 800
Local	Serves primarily to provide direct access to abutting property; should be designed to discourage through traffic	
Residential	Provides direct access to residential lots and to other residential streets	0 to 500

- (1) Each street shall be designed for its entire length to meet the standards for its classification.
- (2) The classification of each street shall be based upon the projection of traffic volumes 10 years after its completion. Traffic volumes shall be calculated in accordance with trip generation rates published in the most recent edition of the Institute of Traffic Engineers (ITE) Trip Generation Manual or alternate source acceptable to the Department and shall consider all traffic likely to use each street.

E. Minimum level of service.

- (1) All proposed streets and intersections in a subdivision or land development shall be designed to function at Level of Service A or B.
- (2) The existing level of service on any adjacent street and intersection that will be affected by a proposed subdivision or land development shall not fall below level C if it is currently A, B, or C and shall not be further reduced if it is at level D, E or F.

F. Traffic impact study.

- (1) When required. A traffic impact study shall be required for a subdivision or land development which will generate 100 or more peak-hour trips when fully developed. A traffic impact study may also be required by the Department to assess the impacts of smaller projects if traffic

congestion or safety problems already exist.

- (2) Methodology. The study shall be conducted in accordance with the recommended practice "Traffic Impact Analysis for Site Development," published by the Institute of Transportation Engineers, 2010, or in accordance with an equivalent methodology in PennDOT's "Policies and Procedures for Transportation Impact Studies," 2009.
 - (a) The scope of the study, study area and methodology shall be approved by the Department before the study is initiated. (A preapplication conference should be scheduled for this purpose.)
 - (b) The study shall be performed by, or under the supervision of, a professional engineer with training in traffic and transportation engineering studies and experience in the preparation of traffic studies.
- (3) Required findings.
 - (a) The traffic impact study must demonstrate that the levels of service specified in Subsection E will be met by the proposed development and that the circulation plan for the development will function safely and efficiently.
 - (b) The study shall describe any measures which have been incorporated into the development plan in order to achieve the required conditions. Such measures may include but are not limited to:
 - [1] A reduction in the density or intensity of the proposed development.
 - [2] Measures to reduce traffic impacts, such as the clustering of buildings for easy access by transit or ridesharing vehicles or the inclusion of transit-related improvements.
 - [3] The phasing of construction to coincide with the completion of transportation improvements which have been programmed by the municipality, County or state.
 - [4] The construction of on-site transportation improvements.
 - [5] The construction of off-site transportation improvements or payment of impact fees, when authorized by a municipal impact fee ordinance.
 - [6] The extension of transit, bicycle or pedestrian services to the site or the sponsorship of a ridesharing program or transit subsidies for employees.
 - [7] Any combination of the above or additional measures.
 - (c) Any traffic impact mitigation measures which are not physical site improvements shall be incorporated into the development agreement executed between the municipality and the applicant and shall be recorded with the land development plan.

G. Special-purpose streets.

- (1) Private streets. Private streets may be permitted by the Department, with the concurrence of the municipality.
 - (a) Private streets shall comply with the design and construction standards for public streets of the same functional class.

- (b) An agreement for maintenance of private streets shall be recorded with the final plan and shall include, in case of failure to maintain in accordance with the agreement, an offer of dedication to the municipality together with provisions for funds sufficient to restore the private street to the standards required for public streets prior to acceptance of dedication.
- (2) Cul-de-sac streets shall comply with the following standards:
 - (a) A cul-de-sac street serving residential development shall not provide the sole access for more than 30 dwellings or a maximum of 250 vehicle trips per day.
 - (b) A residential cul-de-sac street shall end in a turnaround which has a paved cartway not less than 20 feet in width, surrounding a landscaped island with a minimum radius of 24 feet, except in the following circumstances:
 - [1] A cul-de-sac head with a radius of 40 feet and a cartway width of 14 feet surrounding a landscaped island shall be acceptable for one-way circulation.
 - [2] Hammerhead turnarounds may be used, if the cul-de-sac street does not provide access for more than eight dwelling units. The long dimension of the turnaround head shall be not less than 50 feet.
 - [3] A temporary turnaround shall be provided at the end of dead-end streets which are intended to be extended as through streets in the future. If the length of a dead-end street exceeds the depth of one lot, the temporary turnaround shall be constructed with an all-weather surface and a minimum cartway radius of 25 feet, and its use shall be guaranteed to the public.
 - (c) The terminus of a nonresidential cul-de-sac street shall be designed so that the largest vehicles expected to use the street can complete the turn without backing. If a cul-de-sac head is proposed, a landscaped island shall be provided.
 - (d) For any cul-de-sac street which is at least 800 feet in length, a traffic calming device, such as a stop sign, intermediate turnaround or traffic circle, shall be provided at the approximate midpoint of the street. For cul-de-sac streets that exceed 800 feet in length, a traffic calming device shall be provided every 350 feet or so. The design and placement of the proposed traffic calming device shall be acceptable to the Department and the municipal engineer.
 - (e) A "no outlet" sign shall be erected at the entrance to every cul-de-sac or dead-end street, which shall comply with the standards and specifications of the jurisdiction owning the intersecting street.
- (3) Half or partial streets shall not be permitted.
- (4) Alleys may be permitted, with the concurrence of the municipality, and shall comply with the following standards:
 - (a) Alleys may not be used as the only means of access to a lot.
 - (b) Alleys in residential developments shall have a minimum right-of-way of 16 feet and a minimum cartway of 12 feet.
 - (c) Alleys in nonresidential developments shall have a minimum right-of-way of 20 feet and a minimum cartway of 16 feet. Where necessary, a radius shall be provided at the alley

intersection, sufficient to accommodate any large vehicles that may be expected to use the alley.

- (d) Dead-end alleys shall not be permitted without a turnaround and are subject to the approval of the Department.

H. Driveways and access drives.

- (1) Driveways and access drives shall enter public streets at safe locations. No driveway or access drive shall enter a public street closer to an existing intersection than 50 feet. Distances shall be provided as noted below:
 - (a) For individual residential lots: 50 feet;
 - (b) For multifamily and nonresidential lots: 100 feet; and
 - (c) A reasonable safe sight distance shall be provided based upon the PennDOT guidance provided in Chapter 441, Access to and Occupancy of Highways by Driveways and Local Roads.³⁴
- (2) The maximum permitted grade on residential driveways shall be 14% and on nonresidential driveways shall be 10%. A leveling area for all driveways and access drives shall be provided for a minimum distance of 12 feet, measured from the edge of the pavement of the intersecting street, at a maximum grade of 5%.
- (3) Shared driveways for up to four houses shall be permitted. Shared driveways may have a maximum grade of 14%, provided that safe sight stopping distances are provided the length of the driveway. Pavement width may vary but shall be appropriate to the length, width and gradient of the proposed driveway. The Department may require shoulders or guide rail, if deemed necessary for safety.

I. Design speeds. Design speeds shall be as follows:

- (1) Arterial roads: 50 miles per hour.
- (2) Collector streets: 35 miles per hour.
- (3) Minor collector streets: 25 miles per hour.
- (4) Local streets: 15 to 20 miles per hour.

J. Street grades.

- (1) The entire width of the right-of-way of each street in a proposed subdivision shall be graded, except as specified in § 780-504A.
- (2) Minimum permitted street grade for all streets shall be 1%.
- (3) Maximum street grades, other than due allowance for vertical curves, shall be as follows:
 - (a) Arterial roads: 6%.
 - (b) Collector streets: 8%.

34. Editor's Note: See 67 Pa. Code Chapter 441.

- (c) Minor collector streets, nonresidential: 10%.
- (d) Minor collector and local streets, residential: 12%.
- (4) Street grades shall be measured along the center line of the street.
- (5) Center-line grade on the head of a cul-de-sac or hammerhead shall not exceed 5%.
- (6) Where the grade of the street is six feet or more above the grade of the abutting land, guardrails shall be provided.

K. Street alignment.

- (1) Minimum safe stopping sight distances on all vertical and horizontal curves shall be as follows:
 - (a) Twenty miles per hour: 110 feet.
 - (b) Twenty-five miles per hour: 180 feet.
 - (c) Thirty-five miles per hour: 250 feet.
- (2) Minimum center-line radii for horizontal curves shall be as follows:
 - (a) Arterial roads: 700 feet.
 - (b) Collector streets: 350 feet.
 - (c) Minor collector streets: 200 feet.
 - (d) Local streets: 100 feet.
- (3) For other than local streets, a minimum tangent of 100 feet between reverse curves shall be provided. For local streets, a lesser tangent may be acceptable, provided that safe stopping distances are maintained as per Subsection K(1). Broken-back curves shall be avoided; however, when they must be used, a minimum tangent of 150 feet shall be provided.
- (4) Vertical curves shall be provided for all changes in grade exceeding 1%. For each 1% of algebraic difference between tangent grades over 3%, at least 15 feet of vertical curve length shall be provided. Minimum vertical curve lengths shall be as follows:
 - (a) Arterial roads: 150 feet.
 - (b) Collector streets: 100 feet.
 - (c) Local streets, residential: 50 feet.

L. Intersections.

- (1) The design of intersections shall balance the needs of all street users, including pedestrians and bicyclists. Safe pedestrian crossings shall be included on every arterial and collector. The following design features are required as applicable:
 - (a) Dedicated turning lanes. On-street types with medians, the median shall be narrowed to allow the left-turn lane without disrupting on-street parking and bulb-outs. On-street types without medians and with on-street parking, on-street parking shall cease a safe distance from the intersection, and travel lanes shall shift to allow for a dedicated left-turn lane. At

a minimum, parking shall cease 30 feet from the intersection.

- (b) Bulb-outs. Bulb-outs are encouraged where possible. At a safe distance from the intersection, on-street parking shall cease and the curb shall be extended to the travel lane.
 - (c) Medians. On-street types with medians, a ten-foot median is permitted at intersections after a left-turn lane has been provided. Construction and landscaping of these medians shall provide a midintersection pedestrian refuge.
 - (d) Roundabouts. Roundabout design shall comply with state and federal design guidelines.
- (2) The angle of intersecting streets shall be as close to 90° as possible. No streets shall intersect at an angle less than 60°.
 - (3) Distance between intersections shall be as follows:
 - (a) Arterial roads: 800 feet.
 - (b) Collector streets: 300 feet.
 - (c) Local streets: 150 feet.
 - (4) Intersections between more than two streets shall be avoided.
 - (5) Where the grade of any street at the approach to an intersection exceeds 5%, a leveling area shall be provided for the secondary intersecting street. The transition grade shall not exceed 3% for the minimum distance of 50 feet measured from the edge of the pavement of the intersecting street.
 - (6) An area of unobstructed vision shall be provided at every intersection. The minimum clear sight triangle shall be measured:
 - (a) Along the center lines of the intersecting streets, where L equals the distance along the center line of the primary through street, measured from its intersection with the center line of the secondary intersecting street, to an approaching vehicle on the primary street.
 - (b) On the secondary intersecting street, from a point at least 20 feet back from the edge of the pavement of the primary through street, which is 3.5 feet above the surface of the pavement. Minimum values for L are as follows:
 - [1] Arterial roads: L = 500 feet.
 - [2] Collector streets: L = 300 feet.
 - [3] Minor collector streets: L = 200 feet.
 - [4] Local streets: L = 200 feet.
 - (7) No plantings or structures exceeding 30 inches in height shall be permitted in the clear sight triangle. A public right-of-entry shall be reserved for the purpose of removing any object that obstructs the clear sight triangle.
 - (8) Deceleration, turning or merging lanes may be required by the municipality along existing and proposed collector or arterial roads.
 - (9) Clearly marked crosswalks and accessible curb ramps shall be provided at intersections where

there are sidewalks or pedestrian walkways. The Department may require crosswalks in other locations to ensure pedestrian safety and convenience. Crosswalks shall meet the PennDOT pavement markings standards in TC-8600, Sheet 6 of 11. Crosswalks should be stamped or scored concrete (with approved nonreflective color mixed into the concrete) as shown on Sheet 6, Types D, E or F. PennDOT-approved hot thermoplastic pavement markings with diagonal lines between parallel lines are acceptable (Type B). Painted parallel or perpendicular lines are not acceptable (Types A and C).

(10) Curb radii.

(a) Curb radii shall be as follows:

- [1] Arterial roads: 50 feet.
- [2] Collector streets: 25 feet to 30 feet.
- [3] Minor collector streets: 25 feet to 30 feet.
- [4] Local streets: 15 feet to 25 feet.

(b) Where two roads of different right-of-way widths intersect, the radii of curvature for the higher-classification road shall apply.

M. Rights-of-way and cartways.

- (1) The right-of-way shall be measured from lot line to lot line and shall be wide enough to contain the cartway, curbs, or shoulders and, when required, parking lanes, sidewalks, street trees and bike lanes.
- (2) The right-of-way width of a new street that is a continuation of an existing street shall in no case be at a lesser width than that of the existing street.
- (3) The right-of-way width shall consider future development in accordance with the Comprehensive Plan as well as the plan for the proposed development.
- (4) Right-of-way widths shall be within the following minimum and maximum ranges; however, the context of the future street (urban, suburban, or rural) should be considered first:
 - (a) Arterial roads: 70 feet to 70 feet.
 - (b) Collector streets: 36 feet to 50 feet.
 - (c) Minor collectors: 24 feet to 40 feet.
 - (d) Local streets: 22 feet to 30 feet.
- (5) For local and residential minor collector streets, moving lanes shall be nine feet or 10 feet wide. For collector streets, moving lanes shall not be less than 10 feet and not more than 12 feet wide. Where on-street parking is needed, parking lanes shall be eight feet wide.
- (6) Street paving widths shall be within the following minimum and maximum ranges:
 - (a) Arterial roads: 36 feet to 48 feet.
 - (b) Collector streets: 24 feet to 36 feet.

- (c) Minor collectors: 20 feet to 28 feet.
- (d) Local streets: 18 feet to 28 feet.
- (7) Additional right-of-way and/or cartway widths may be required for the following reasons:
 - (a) To promote public safety and convenience.
 - (b) To provide parking areas in urban districts and in areas of high-density residential development.
 - (c) To provide slopes rights whenever the topography is such that an additional right-of-way is needed to provide adequate earth slopes.
 - (d) To provide for bicycle or pedestrian facilities.

N. Curbs.

- (1) Curbing shall be required for the following purposes:
 - (a) For stormwater management (may be depressed curbs).
 - (b) To stabilize pavement edges.
 - (c) To delineate parking areas.
 - (d) Where on-street parking will occur.
 - (e) At street intersections.
 - (f) Where grades exceed 6%.
 - (g) At tight radii.
- (2) The type of curb required shall be appropriate to the street classification and use.
- (3) Where curbing is not required, an edge treatment, such as a thickened edge, shall be provided as needed for safety and to maintain the stability of the pavement.

O. Shoulders and embankments.

- (1) Shoulders and drainage swales shall be used instead of curbs when:
 - (a) Shoulders are required by state or other law.
 - (b) Soil or topographic conditions make the use of shoulders and drainage swales preferable.
 - (c) In order to preserve the rural character of an existing community or a proposed development.
 - (d) Shoulders are needed for bicycle facilities.
- (2) Shoulders shall be a minimum of four feet in width on both sides of the street and shall be located within the right-of-way. Greater shoulder widths shall be provided as recommended by a registered professional engineer and shall be acceptable to the municipal engineer.
- (3) Shoulder material and construction shall be as recommended by a registered professional

engineer and shall be acceptable to the municipal engineer.

- (4) The width of swales shall be determined by site-specific conditions.

P. Bikeways.

- (1) All new streets shall be planned and constructed to accommodate bicycle travel safely.
- (2) For residential developments which will generate 500 or more vehicle trips per day and for all major nonresidential developments, bicycle traffic shall be accommodated in one of two ways:
 - (a) A bikeway master plan, which identifies bike routes that safely connect major traffic origins and destinations, shall be prepared. The plan may propose a combination of existing and proposed bike lanes, bike paths, shared pedestrian sidewalks and pathways and shared vehicular roadways. The plan shall demonstrate how any paths, sidewalks or roadways which are proposed to be shared should be able to accommodate the shared use safely.
 - (b) Bikeways, which shall be provided as follows:
 - [1] For nonresidential developments, bikeways shall be provided along any new collector or arterial road constructed as part of the development.
 - [2] For residential developments, bikeways shall be provided along any new minor collector, collector or arterial road constructed as part of the development.
- (3) Where a proposed development is within 1,000 feet of an existing bikeway or a proposed bikeway included in a municipal or County bikeway plan or official map, the development plan shall provide for connections to the existing or proposed bikeway.
- (4) Bikeways can take the form of on-road facilities, such as bike lanes, cycle tracks, or shared lanes ("sharrows"), or off-road bicycle/pedestrian paths.
 - (a) Bicycle lanes shall include the application of pavement striping, markings, and regulatory signage and shall be a minimum of six feet wide. Bicycle lanes may include the application of high-visibility paint to differentiate it from vehicular travel lanes.
 - (b) Cycle tracks are bicycle facilities that are adjacent to roadways but separated by a physical barrier. Cycle tracks shall be a minimum of nine feet wide.
 - (c) Shared lanes shall include pavement markings as required in the latest PennDOT Design Manual and as provided for in the latest edition of the Manual for Uniform Traffic Control Devices.
 - (d) Off-road bicycle paths shall be a minimum of eight feet wide, although 12 feet is recommended.

Q. Public transportation.

- (1) Where a proposed development is adjacent to or within 1,000 feet of collector or arterial roads where transit service is currently provided or may be provided in the future, the applicant shall consult with the transit authority regarding street design requirements for buses and passenger waiting areas and shelters.
- (2) Where a development site is adjacent to or includes a rail transit facility or other exclusive

transit right-of-way, the applicant shall consult with the transit authority to determine whether any special design features concerning the rail transit facilities will be required.

R. Sidewalks and pathways.

- (1) Where a proposed development is adjacent to or within 1,000 feet of an existing or future rails-to-trails (or other public trail system) system, access from the proposed development to the rails-to-trails system shall be considered in the design and layout of the plan.
- (2) Pedestrian pathways and improved sidewalks shall be included in developments in which any of the following conditions are met:
 - (a) Where sidewalks exist in the same block on the same side of the street.
 - (b) Within residential developments where the net density exceeds two dwelling units per acre and new streets are proposed.
 - (c) Within planned business, commercial or industrial developments.
 - (d) Along roads that are served by public transit or may be served by public transit within three years of the expected date of completion of the proposed development.
 - (e) Where blocks exceed 600 feet in length.
 - (f) Within or along the perimeter of any other pedestrian generator, including:
 - [1] Schools, libraries, community centers and places of worship.
 - [2] Parks and other recreation centers.
 - [3] Shopping or commercial centers.
- (3) Public sidewalks shall in general be parallel to the street and within the right-of-way. However, alternative locations will be considered, provided that safe and convenient pedestrian circulation is maintained.
- (4) New sidewalks must connect to existing sidewalks where the existing sidewalks are within a right-of-way and within 50 feet of the new sidewalks.
- (5) Pathways in general shall serve to connect major use areas such as buildings, parking lots, recreational facilities and other accessory uses and to separate the movement of pedestrians from vehicles to the greatest extent possible.
 - (a) The site plan shall minimize potential hazards by using special paving, grade separations, pavement marking, signs, striping, bollards, median refuge islands, traffic calming features, landscaping, lighting or other means to clearly delineate pedestrian areas for both day and night use.
- (6) Sidewalks and pathways shall have a minimum width of five feet or, if abutting a street curb, shall have a minimum width of eight feet. Wider widths may be required near major pedestrian generators.
- (7) Sidewalks within street or public rights-of-way shall be concrete, the design and construction of which shall be subject to approval by the municipal engineer. Pathways may be constructed of other materials, including pervious materials, provided that the proposed materials and

construction are appropriate to the surrounding land use and expected volume of pedestrian traffic and are approved by the municipal engineer.

- (8) Curb ramps shall be provided at all intersections consistent with PennDOT Standards for Roadway Construction, Pub. 72, RC-67M (13 Sheets), most recent edition.
- (9) Public sidewalks shall be constructed in accordance with federal specifications for accessibility.

S. Streetlights and site lighting.

- (1) In residential subdivision where lots are 20,000 square feet or smaller, lighting shall be provided at the following locations:
 - (a) The intersection of the existing public street with the entrance to the proposed development.
 - (b) Intersections of public streets within the proposed development.
 - (c) The apex of the curve of any major thoroughfare (public or private) within the proposed development having a radius of 300 feet or less.
 - (d) Cul-de-sac "bulbs."
 - (e) Terminal ends of median islands having concrete curbing, trees or other fixed objects not having a breakaway design for speeds of 25 miles per hour or greater.
- (2) In a residential development where there is on-street parking or there are common parking areas of five or more spaces, these parking spaces shall be illuminated.
- (3) Lights shall be provided in parking areas, along sidewalks and between buildings in multifamily and nonresidential land developments as needed for public safety and convenience. Such lighting shall comply with the standards of § 780-521. The lighting plan required by § 780-402C shall be provided to demonstrate compliance.
- (4) Street lighting shall be subject to compliance with the standards of § 780-521. The lighting plan required by § 780-402C(13) shall be provided to demonstrate compliance.
- (5) The quantity, location, style, type and shielding of light standards shall be appropriate to the use, the development, and the municipality and shall be approved by the Department, subject to the recommendation of the municipal engineer.

T. Street signs.

- (1) Street name signs shall be provided at all new street intersections.
- (2) Street name signs shall be installed under streetlights and shall be free of all visual obstructions.
- (3) The design of street name signs shall be consistent, uniform, and appropriate to the municipality and to the development and shall be acceptable to the municipal engineer.
- (4) Traffic control signs shall be provided by the applicant as needed. The design and placement of traffic control signs shall be as specified in the Manual on Uniform Traffic Control Devices for Streets and Highways and shall meet all state and local requirements.

U. Traffic calming. Traffic calming measures described in Table V-5 may be used to modify vehicle

speeds and other driver behavior. An asterisk (*) means that the device is permitted, while a blank cell means that the device is not permitted.

- (1) The choice, design and installation of traffic calming measures on any collector or arterial road shall be balanced with its regional vehicle traffic-carrying role.
- (2) The planning and installation of traffic calming measures shall respect the presence of driveways.

Table V-5
Suitability of Traffic Calming Measures

Traffic Calming Measure	Arterial	Collector	Town Center	Local Road
Midblock bulb-outs Midblock bulb-outs reduce the width of the roadway for a midblock section. They shorten crossing distances for pedestrians and draw attention to pedestrians via raised peninsulas. Bulb-outs can be built within the marked on-street parking area or on residential roadways over 20 feet in width.	*	*	*	*
Restriping Streets can be restriped to create lanes that are nine feet to 11 feet wide. The excess space can be used to create bike lanes or marked on-street parking on one or both sides. Bicycle lanes shall be five feet wide minimum, and on-street parking shall be seven feet wide minimum. The parking can be staggered to create a weaving path on the roadway, further informing drivers that caution should be used in the neighborhood.	*	*	*	*
Gateways Gateways appear to narrow the street, and also serve as highly visible entryways into neighborhoods. Gateway features can also double as transit waiting areas.		*	*	*

Table V-5
Suitability of Traffic Calming Measures

Traffic Calming Measure	Arterial	Collector	Town Center	Local Road
Unmarked on-street parking Allowing on-street parking on streets without designated on-street parking areas will create a series of single-lane yield points wherever parked cars are present. This "informal" single-lane yield point occurs when the street width is narrow enough to prevent simultaneous passing of two moving vehicles past a parked vehicle. For streets up to 30 feet in width, allowing parking on both sides of the street is necessary to create a yield point.			*	*
Textured pavement Textured pavement is an effective traffic calming measure. The advantages of a textured street are that it is aesthetically pleasing and it calms traffic better as it ages as the surface wears out. Installation costs are higher than those for asphalt roadways, but long-term maintenance costs are lower. However, textured pavement can be loud.	*	*	*	*
Raised intersections Raised intersections slow cars down throughout an entire intersection, providing an extra level of safety for pedestrians crossing an intersection. This improvement may be most appropriate for commercial areas where both vehicular and pedestrian traffic volumes are high. Textured pavement can also be part of this improvement.		*	*	*

§ 780-520. Parking facilities.

A. Application. All land developments shall include parking facilities for the planned uses.

- (1) If the municipal zoning ordinance includes parking standards, the standards of the municipal ordinance shall apply, except:

- (a) If the municipal ordinance does not include provisions for accessible parking facilities and/or bicycle parking, the standards for those facilities contained in this chapter shall apply.
- (b) If the municipal ordinance does not contain standards for the landscaping of parking lots, the requirements of § 780-512E of this chapter shall apply.
- (2) If the municipal zoning ordinance does not include parking standards, the standards of this chapter shall apply.

B. Parking requirements.

- (1) Residential land developments.
 - (a) In areas where streets are designed and commonly used for on-street parking, at least one off-street parking space shall be provided for every new dwelling unit.
 - (b) In areas where streets are designed without parking lanes, at least two off-street parking spaces shall be provided for every dwelling unit.
 - (c) In apartment developments restricted to occupancy by the elderly, the parking requirement may be reduced to one parking space for every four dwelling units, plus one space for every employee on the largest shift.
- (2) Nonresidential land developments. Parking for nonresidential uses shall be provided in accordance with Table V-6. The required number of spaces may be increased or reduced by up to 10%. Applicants proposing greater than ten-percent variation must comply with § 780-520E.

**Table V-6
Off-Street Parking Requirements for Nonresidential Uses**

Nonresidential Land Uses	Required Off-Street Parking Spaces Per Indicated Area
Assembly operations	1 per 800 square feet GFA
Bar	1 per 2 seats
Bowling alley	4 per alley
Car wash	10 per washing lane
Church/synagogue	1 per 3 seats
Fiduciary institutions	1 per 300 square feet GFA
Finishing operations	1 per 800 square feet GFA
Hotel/motel	1 per guest room, plus 10 per 1,000 square feet GFA
Industrial	1 per 800 square feet GFA
Library	1 per 300 square feet GFA
Manufacturing	1 per 800 square feet GFA
Medical center	1 per 250 square feet GFA
Nightclub	1 per 3 seats

Table V-6
Off-Street Parking Requirements for Nonresidential Uses

Nonresidential Land Uses	Required Off-Street Parking Spaces Per Indicated Area
Offices	
Under 49,999 square feet GFA	4.5 per 1,000 square feet GFA
50,000 to 99,999 square feet GFA	4 per 1,000 square feet GFA
100,000+ square feet GFA	3.5 per 1,000 square feet GFA
Receiving	1 per 5,000 square feet GFA
Research	1 per 1,000 square feet GFA
Restaurant	1 per 3 seats
Quick-food establishments	1 per 30 square feet GFA
Retail store	1 per 200 square feet GFA
Schools	
Elementary	2 per classroom, but not less than 1 per teacher and staff
Intermediate	1.5 per classroom, but not less than 1 per teacher and staff
Secondary	2.5 per classroom, but not less than 1 per teacher and staff
Service station	4 per bay and work area
Shipping	1 per 5,000 square feet GFA
Shopping center	
Under 400,000 square feet GLA	4 per 1,000 square feet GLA
400,000 to 599,999 square feet GLA	4.5 per 1,000 square feet GLA
600,000+ square feet GLA	5 per 1,000 square feet GLA
Storage areas	1 per 5,000 square feet GLA
Theater	1 per 3 seats
In shopping center	1 per 4 seats
Warehouse	1 per 5,000 square feet GFA

NOTES:

GFA = gross floor area.

GLA = gross leasable area.

SOURCE: Listokin, David and Walker, Carole, The Subdivision and Site Plan Handbook, Rutgers, State University of New Jersey, Center for Urban Policy Research, 1989.

- (3) Accessible parking. Accessible parking shall be provided for all nonresidential developments and multifamily developments with more than five units. Accessible parking spaces shall be the closest spaces to the nearest accessible entrance and shall conform with federal standards for accessibility. The minimum number of required spaces shall be as follows:

Total Required Parking Spaces	Accessible Spaces
5 to 100	1 per 25
100 to 1,000	1 per 50
Over 1,000	1 per 100

- (4) Bicycle parking facilities. Bicycle parking facilities shall be provided for nonresidential land developments in accordance with the following standards:
- (a) Bicycle parking spaces shall be provided at a rate of one space for the first 10 automobile parking spaces, plus one space for every additional 50 automobile parking spaces thereafter.
 - (b) Each bicycle space shall be equipped with a structure to which a bicycle frame and one wheel can be attached using a chain, cable, or U-lock. There shall be adequate separation between structures to allow bicycles to be attached or removed without moving other bicycles. The structure shall be suitable for use by bicycles not equipped with kickstands.
 - (c) Bicycle parking spaces shall be convenient to the structure or outdoor area for which they are provided. They shall be visible from at least one entrance to the structure and shall be provided with lighting.
 - (d) Bicycle parking structures shall be placed to provide at least two feet of free space between a bicycle and the edge of the curb or sidewalk or three feet between a bicycle and the outside edge of the roadway shoulder.

C. Dimensional standards.

- (1) Stall size. Perpendicular or angled parking spaces for automobiles shall be no less than nine feet in width and 18 feet in length. Parallel spaces shall be no less than eight feet in width and 23 feet in length. Accessible spaces shall be no less than 12 feet in width.
- (2) Aisle width. The width of aisles providing access to parking stalls shall be in accordance with the chart below. Only one-way traffic shall be permitted in aisles serving parking spaces placed at an angle other than 90°.

Parking Angle (degrees)	Aisle Width (feet)
30°	12
45°	13
60°	18
90°	22

D. General design standards.

- (1) Parking areas shall be designed to provide safe ingress and egress from the streets that provide access to the land development. No parking spaces shall enter directly onto streets. All parking areas shall be connected with streets by access drives.
- (2) Parking areas shall be designed to provide for the safe and convenient movement of people between parking areas and their destinations on the development site.
 - (a) In major developments, pedestrian walkways shall be provided in accordance with § 780-519R and integrated with the landscaping required by § 780-512E.
 - (b) Parking areas, pedestrian walkways and building entrances shall be lighted in accordance with the standards of § 780-519S.
- (3) Parking areas shall be designed to minimize large expanses of pavement, and provision of parking spaces in excess of demand shall be avoided.
 - (a) In nonresidential areas, shared parking may be provided for uses which have different periods of peak demand, provided that the applicant documents the differing patterns of use and provides for the average peak demand of the combined uses. The documentation must include provisions acceptable to the Department and to the municipality for the continuing use and maintenance of any shared facilities.
 - (b) For nonresidential land developments in areas of municipalities where public parking facilities are available, the applicant may fulfill all or a portion of the requirement for off-street parking facilities generated by the proposed development by contributing funds to the municipality or parking authority in lieu of constructing parking spaces on site. Such funds shall be used for the improvement or expansion of public parking facilities and shall be approved by the Department only if approved by the municipal governing body.
 - (c) In addition to minimization of impervious area, other stormwater BMPs shall be considered such as:
 - [1] Pervious pavement with infiltration bed;
 - [2] Infiltration basin;
 - [3] Subsurface infiltration bed;
 - [4] Infiltration trench;
 - [5] Rain garden/bioretention;
 - [6] Constructed filter; and

[7] Vegetated filter strip.

- (4) In developments of detached and attached single-family homes, off-street parking shall be located on the same lots with the dwellings that they serve.
 - (5) Parking lots shall be designed with a minimum grade of 1% and a maximum grade of 5%. They shall be graded for proper drainage of stormwater.
 - (6) Landscaping. All parking areas shall be landscaped in accordance with the provisions of § 780-512E.
- E. Parking reductions or increases. Applicants may vary from the off-street parking requirements provided for in Table V-6 by greater than 10% by providing sufficient documentation that demonstrates reduced or increased parking demand.
- (1) The provision of on-street parking or employee showers, lockers and changing areas will justify a reduction in off-street parking. Employee showers, lockers and changing areas encourage bicycle commuting, thus reducing the strain on parking facilities.
 - (2) In all cases, applicants must provide sufficient documentation to clearly establish that minimum and maximum parking needs shall be accommodated. Where inadequate on-site parking causes a recurring traffic hazard or a nuisance off site, the owner shall be responsible for increasing the number of parking spaces or decreasing the need for parking spaces.
 - (3) Applicants seeking an increase in parking shall provide a parking study consistent with the following standards:
 - (a) The application for reduced parking shall include a description of the use, a development plan, a trip generation report, and a parking study. The parking study shall include the characteristics of each use, peak parking demand, hours of operation, and potential improvements in access, design, and circulation.

§ 780-521. Monuments and markers.

- A. Requirement. Permanent monuments and markers shall be placed in all subdivisions in order to provide survey and property line control.
- (1) The location and installation of monuments and markers shall be planned to ensure that they will be permanent, accessible and recoverable.
 - (2) All monumentation shall conform to recommended practices of the surveying profession, as contained in the most recent edition of the Manual of Practice for Professional Land Surveyors in the Commonwealth of Pennsylvania or equivalent standard of professional practice acceptable to the Department.
- B. Placement.
- (1) Intervisible monuments shall be placed sufficiently far apart to ensure accuracy control within survey procedures. They shall be placed with priority consideration for permanence and accessibility. This will require consideration of the ultimate use of the land where the monuments are to be placed, exposure to future roadway maintenance, and lot landscape development. To that end, monuments should be located in the following order of priority:
 - (a) On a five-foot or appropriate survey line only where sidewalks are to be installed.

- (b) If no sidewalks are to be placed, then the center line of the roadway should be monumented.
 - (c) Other locations along or on the right-of-way line, giving due consideration to the lot owner's use of the land and the likelihood of future changes in elevation or landscape, which would affect the monument's location or its intervisibility.
- (2) Monuments shall be placed in a sufficient number of locations to define the boundary of a subdivision and the location of all streets. Sufficient monuments shall be placed to locate intersections, culs-de-sac, and curves in horizontal street alignments. Monuments shall be intervisible.
 - (3) Markers shall be placed at the corner of all lots or at such other locations as may be required to locate all lot lines.
 - (4) The location of all monuments and markers shall be shown on the plan for recording, with the distance between them and curve data shown.
 - (a) A notation indicating whether the monuments and markers were found or set and a description of their type, size, material, condition and position shall be included.
 - (b) Monuments shall be identified on the Pennsylvania Plane Coordinate System - NAD 83 or 27, where it is feasible to do so. This requirement may be waived for small projects where the control locations are so distant that the cost of complying would be burdensome in relation to the total survey cost.
 - (5) All monuments and markers shall be placed by a registered surveyor prior to approval of the final plan, or financial security sufficient to cover their cost and placement shall be provided in accordance with the provisions of § 780-303F.

C. Materials.

- (1) Monuments shall be of durable materials of sufficient length and cross-sectional areas to be reliably permanent and shall clearly indicate the survey point. Concrete or stone monuments with a minimum width of four inches and a minimum length of 30 inches shall be acceptable. Other materials may be acceptable, with the approval of the municipal engineer.
- (2) Markers shall be iron pins or pipes, 30 inches in length, or other material acceptable to the municipal engineer.
- (3) Monuments and markers shall be detectable with conventional ferrous metal or magnetic locators.

§ 780-522. Outdoor lighting.

A. Luminaire design.

- (1) For horizontal surfaces (parking lots, merchandising and storage areas, fuel-dispensing facilities, auto sales areas, loading docks, passive recreation, bicycle and pedestrian trails, sidewalks and building entrances), fixtures shall be aimed straight down and shall meet IESNA full cutoff criteria. Fixtures with aggregate output not exceeding 500 lumens (equivalent to a forty-watt incandescent bulb) are exempt. In the case of decorative/period street lighting, full shielding or IES cutoff criteria may be substituted for full cutoff.

- (2) For nonhorizontal surfaces (facades, landscaping, signs, billboards, fountains, statuary and other exterior displays), fixtures shall be shielded and aimed so to not project light output beyond the object being illuminated into the windows of neighboring residences, adjacent uses, skyward or onto a public roadway. Fixtures with aggregate output not exceeding 500 lumens (equivalent to a forty-watt incandescent bulb or ten-watt compact fluorescent bulb) are exempt.
- (3) Lighting for recreational uses shall be the minimum necessary for the proposed use and shall be directed and shielded to minimize the impact on adjacent properties. The visual impact plan required by § 780-402C(13)(f) shall be provided to determine compliance.

B. Control of glare.

- (1) All lighting shall be aimed so as not to present a hazard to drivers or pedestrians or create a nuisance by projecting or reflecting objectionable light onto neighboring uses or properties.
- (2) Directional fixtures shall be shielded, installed and aimed so they do not project output past the object being illuminated into windows of neighboring uses, skyward or onto a public roadway or pedestrianway.
- (3) Parking and vehicular pedestrianway lighting for commercial, industrial and institutional uses (except for security lighting and all-night business operations) shall be extinguished, using a programmable controller, within 1/2 hour after the close of business. Safety or security lighting for after-hours illumination shall not exceed 25% of the number of fixtures or illuminance permitted for illumination during regular business hours. If there is continued, but reduced, evening activity, the use of dimming circuitry to lower illumination levels by 50% after 11:00 p.m. or after normal business hours shall be permitted.
- (4) Vegetative screens shall not be used to serve as the primary means for controlling glare. Rather, glare control shall be achieved primarily through the use of such means as cutoff fixtures, shields and baffles and appropriate application of fixture mounting height, wattage, aiming angle and placement.
- (5) The illumination projected from any property onto a residential use shall at no time exceed 0.1 initial footcandle, measured line of sight from any point on the receiving property.
- (6) The illumination projected from any property to a nonresidential use shall at no time exceed 1.0 initial footcandle, measured line of sight from any point on the receiving property.
- (7) Unless otherwise governed by local zoning, externally illuminated billboards and signs shall be lighted by fixtures mounted at the top of the billboard or sign and aimed downward. The fixtures shall be designed, shielded and aimed to shield the source from off-site view and to restrict the light output beyond the sign or billboard. At no point on the face of the sign or billboard shall the illumination exceed 30 initial vertical footcandles, with a maximum-to-minimum uniformity ratio not to exceed 6:1.
- (8) Under canopy lighting, for such applications as gasoline service stations, hotel and theater marquees, fast-food and drugstore drive-through facilities, shall utilize flat-lens full-cutoff fixtures aimed straight down and shielded in such a manner that the lowest opaque edge of the fixture shall be below the light source at all lateral angles. The illumination of the area directly below the canopy shall not exceed 20 average footcandles, and the maximum shall not exceed 30 footcandles.
- (9) The use of white strobe lighting for tall structures such as smokestacks, chimneys, and radio/

communication/television towers is prohibited during hours of darkness, except as specifically required by the FAA.

C. Installation.

- (1) New electrical feeds shall be run underground.
- (2) Poles in parking areas shall be protected by being placed on concrete pedestals at least 30 inches high above the pavement and shielded by bollards or placed a minimum of five feet outside the paved area or any wheel stops within landscaped islands or end caps.
- (3) Except for the lighting authorized by this chapter for certain recreational uses, fixtures not meeting IESNA full-cutoff criteria shall not be mounted in excess of 16 feet above finished grade. Fixtures meeting IESNA full-cutoff criteria shall not be mounted in excess of 20 feet above finished grade. For illumination of areas containing more than 100 contiguous parking spaces, a mounting height of 25 feet may be permitted for fixtures meeting IESNA full-cutoff criteria when it can be demonstrated that light trespass and glare control meets the requirements of this chapter.
- (4) Pole-mounted fixtures for horizontal illumination shall be aimed straight down and poles shall be plumb.

D. Lighting plan. Where lighting of buildings, signs, parking areas, and other site features is proposed under this § 780-522, a photometric plan containing the information required by § 780-402C(13) shall be submitted.